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operating in said city, and may issue permits for qualified drivers. However, any taxicab driver must also possess a Kentucky operator's license.

(6) Until such time as any city of the commonwealth enacts such ordinances or prescribes such rules and regulations as may be reasonably necessary to exercise the prior powers herein delegated to such cities respecting the supervision and regulation of city buses, taxicabs and taxicab drivers, the department shall possess such powers and may, by regulation, prescribe such rules as may be reasonably necessary to supervise and control city buses, taxicabs and taxicab drivers, having regard for the public safety and the public need for service.

(7) If any city fails to exercise any of the authority granted it herein, such authority shall be vested in the department.

(8) [The power to regulate rates fixed by agreement with a city.] The department may, under the provisions of this chapter, originate, establish, change, promulgate and enforce any rate that has or may be fixed by any contract, franchise or agreement between the holder of any city bus certificate and any city, and all rights and obligations arising out of such contract regulating any such rate shall be subject to the jurisdiction and supervision of the department, but no such rate shall be changed nor any contract, franchise or agreement affecting it be abrogated or changed until a hearing has been had.

Approved March 28, 1974

CHAPTER 308

(H.B. 393)

AN ACT to revise and correct the Kentucky Revised Statutes.

Be it enacted by the General Assembly of the Commonwealth of Kentucky:

Section 1. KRS 6.031 is amended to read as follows:

The Commonwealth of Kentucky is divided into representative districts as follows:

(1) First District: Ballard, Carlisle, Fulton, and Hickman Counties and that part of McCracken County contained within voting precincts New Hope-- Melber and Harper.

(2) Second District: Graves County and that part of Calloway County contained in the voting precinct of Coldwater.

(3) Third District: That part of McCracken County contained in the City of Paducah.

(4) Fourth District: Livingston County and that part of McCracken County not contained in the First District or the Third District.

(5) Fifth District: Calloway County, except the voting precinct of Coldwater, and that part of Trigg County west of Kentucky Highway 139 and including the City of Cadiz.

(6) Sixth District: Lyon and Marshall Counties and Crittenden County except for voting precincts Marion 4, Marion 6, Rosebud 11, and Shady Grove 12.

(7) Seventh District: Union County; that part of Henderson County not contained in the Eleventh District; that part of Daviess County contained in the voting precincts of Pleasure Ridge, Utica, Snyder School, West Louisville, Curdsville, St. Joseph, Rome, Sorgo, Masonville, Stanley, North Town, South Town, Fields, Habit.

(8) Eighth District: That part of Trigg County east of Kentucky Highway 139 but excluding the City of Cadiz; that part of Christian County contained within the following voting precincts: 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17, 18, 24, 25.

(9) Ninth District: That part of Christian County contained within the following voting precincts: 19, 20, 21, 22, 23, 26, 27, 28, 29, 30, 31, 32; that part of Hopkins County contained within the following voting precincts: 14, 15, 16, 17.

(10) Tenth District: Hopkins County except for voting precincts: 14, 15, 16, 17.

(11) Eleventh District: Henderson County, except for the voting precincts of South Corydon, Niagara and Hebbardsville, and that portion of the county lying south of Kentucky Highway 416, beginning at its junction with U.S. 41A and proceeding eastward to its junction with Niagara precinct.

(12) Twelfth District: Caldwell and Webster Counties; that part of Crittenden County not included in the Sixth District; that part of McLean County not contained in the Fifteenth District.

(13) Thirteenth District: That part of Daviess County contained in the City of Owensboro but

excluding the following voting precincts: 4, 6, 7, 10, 11, 15, 17, 18, 19, 20, 32.

(14) Fourteenth District: That part of Daviess County not contained in the Seventh District or in the Thirteenth District.

(15) Fifteenth District: Muhlenberg County and that part of McLean County contained in voting precincts: 2, 3, 6, 8.

(16) Sixteenth District: Todd and Logan Counties.

(17) Seventeenth District: Hancock and Ohio Counties and that part of Butler County not contained within the Nineteenth District.

(18) Eighteenth District: Meade County and Breckinridge County except the voting precincts of McDaniels, Glen Dean.

(19) Nineteenth District: Edmonson and Grayson Counties; that part of Breckinridge County contained in voting precincts of McDaniels and Glen Dean; that part of Butler County included in the Census County Division of Jetson, bounded by Welch Creek, Blacklick School Road, State Highway 411, county line, Green River, Woodbury city limits, Green River, Welch Creek; and including the cities of Morgantown and Woodbury; and including Census Enumeration District No. 8, bounded by Green River, Morgantown city limits, State Highway 403, Cool Spring Church Road, unnamed road, U. S. Highway 231, Muddy Creek and county line; that part of Hart County contained in voting precincts: 3, 13, 14, 16, 17.

(20) Twentieth District: That part of Warren County containing all of the City of Bowling Green excluding the voting precincts of Reels Garage, Octogan Inn, Green Meadows and Delefield but including the voting precincts of Miller's Bottled Gas, Watts Mill and Mt. Victor.

(21) Twenty-first District: That part of Simpson County contained in the voting precincts of Harristown, Public School, West Door and Prospect Hill and that part of Warren County not contained in the Twentieth District.

(22) Twenty-second District: Allen and Monroe Counties, and that part of Simpson County not contained in the Twenty-first District.

(23) Twenty-third District: Barren County and that part of Metcalfe County containing voting precincts Randolph-Wisdom No. 3, Knob Lick No. 4, Savoyard No. 5, Summer Shade No. 8 and Willow Shade-Beaumont No. 9.

(24) Twenty-fourth District: Larue County; that part of Hart County not contained in the Nineteenth District; that part of Marion County not contained in the Fifty-fourth District.

(25) Twenty-fifth District: That part of Hardin County contained in the voting precincts of Elizabethtown East, Elizabethtown West, Elizabethtown Northeast, Elizabethtown Northwest, Elizabethtown North, Helmwood Heights, Mantle, Valley Creek, City Park, Colesburg, Tunnel Hill, Helm, Chelf, Van Meter, South Dixie, Glendale, Nolin, Sonora, Upton, Melrose and White Mills, and that part of the Fort Knox Military Reservation that lies east of a line beginning at the intersection of the southern boundary of the Fort Knox Military Reservation and State Road 447, and extends northward along State Road 447 and a line extending northward through Pleasant View Cemetery and Fort Hill Cemetery and Fort Hill Cemetery to the Jefferson County line at Salt River.

(26) Twenty-sixth District: That part of Hardin County contained in the voting precincts of Radcliff North, Radcliff South, Radcliff West, Vine Grove North, Vine Grove South, Vine Grove West, Longview, Yates, Rineyville, Howe Valley, St. John, Cecilia, East View, Meeting Creek, and Long Grove and that part of the Fort Knox Military Reservation not included in the Twenty-fifth and Twenty-seventh Districts.

(27) Twenty-seventh District: That part of Hardin County not contained in the Twenty-fifth and Twenty-sixth Districts, that part of the Fort Knox Military Reservation whose southern Boundary is Chaffee Avenue extended westward to the Hardin-Meade County line and eastward to State Road 447, thence northward on State Road 447 and a line extending northward through Pleasant View Cemetery and Fort Hill Cemetery to the Jefferson County line at Salt River and that part of Jefferson County contained in voting precincts C8, C18, C19, C23, C44, C53, C70 and C87 of C District of the County.

(28) Twenty-eighth District: That part of Jefferson County containing voting precincts C7, C31, C33, C40, C43, C45, C47, C56, C57, C58, C65, C66, C72, C73, C78, C79, C82, C90 and C91 of C District of the County.

(29) Twenty-ninth District: That part of Jefferson County containing voting precincts C5, C6, C11, C21, C30, C34, C39, C46, C50, C54, C55, C59, C60, C64, C67, C69, C71, C74, C75, C80, C81, C85, and C94 of C District of the county.

(30) Thirtieth District: That part of Jefferson County containing voting precinct 37 of the third ward of the City of Louisville, and voting precincts B7, B10, B13, B14, B15, B18, B19, B21, B22, B24, B38, B42, B43, B48, B54, B58, B64 and B67 of B District of the county.

(31) Thirty-first District: That part of Jefferson County containing voting precincts 16, 17, 19, 26, 29, 34, 35, 36 and 38 of the second ward of the City of Louisville; voting precincts A22, A36, A38, A39, A43, A50, A63 and A74 of A district of the county, and voting precincts B4, B5, B6, B9, B17, B27, B28, B35, B39, B45, B55, B56 and B68 of B District of the county.

(32) Thirty-second District: That part of Jefferson County containing voting precincts 3, 4, 5, 6, 7, 9,

10, 13, 14, 20, 21, 23, 24, 25, 27, 28, 29, 30, 32 and 33 of the first ward; voting precincts 1, 2, 3, 4, 5 and 6 of the second ward; voting precincts 1 and 2 of the third ward of the City of Louisville, and voting precincts A2, A5, A18, A19, A26, A29, A34, A49, A51, A60 and A73 of A district of the county.

(33) Thirty-Third District: That part of Jefferson County containing voting precincts 7, 8, 9, 10, 11, 12, 13, 14, 15, 18, 20, 21, 23, 24, 27, 28, 30, 31, 32 and 33 of the second ward of the City of Louisville; voting precinct A 17 of A district of the county, and voting precincts B1, B2, B3, B29, B30, B31, B33, B34, B59 and B70 of B District of the county.

(34) Thirty-fourth District: That part of Jefferson County containing voting precincts 11, 12, 16, 17, and 19 of the first ward, and voting precincts 7, 8, 9, 10, 11, 12, 14, 15, 18, 19, 20, 21, 22, 23, 25, 26, 27, 28, 30, 31, 32, 33, 34, 35 and 36 of the third ward, voting precinct 11 of the fifth ward of the City of Louisville, and voting precinct B16 of B district of the County.

(35) Thirty-fifth District: That part of Jefferson County containing voting precincts 17 and 29 of the third ward, and voting precincts 5A, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17, 18, 19, 22, 25, 26, 27, 28, 29, 30, 32, and 33 of the fourth ward, voting precincts 10 and 13 of the eighth ward of the City of Louisville, and voting precincts B8, B11, B12 and B32 of B district of the county.

(36) Thirty-sixth District: That part of Jefferson County containing voting precinct 15 of the first ward; voting precincts 13 and 16 of the Third ward; voting precincts 21 and 23 of the Fourth ward; voting precincts 5, 6, 8, 9, 10, 12, 13, 14, 15, 16, 17, 18, 19, 20, 21, 22, 23, 24, 25, 26, 27, 28, 29 and 30 of the fifth ward, voting precincts 9, 11, 12 and 14A of the eighth ward of the City of Louisville.

(37) Thirty-seventh District: That part of Jefferson County containing voting precinct 34 of the fourth ward, voting precincts 4, 6, 7, 8, 9, 10, 11, 14, 17, 18, 19, 20, 21, 22, 23, 24, 25, 26 and 29 of the sixth ward, and voting precincts 6, 8 and 9 of the seventh ward, voting precinct 16 of the eighth ward of the City of Louisville, and voting precincts C24 and C88 of C District of the County.

(38) Thirty-eighth District: That part of Jefferson County containing voting precincts 12, 13, 15, 16, 27, 28, 30, 31, and 32 of the sixth ward, voting precincts 3A, 5, 7, 10, 12, 13, 14, 15, 16, 17, 18, 19, 20, 21, 22 and 23 of the seventh ward of the City of Louisville.

(39) Thirty-ninth District: That part of Jefferson County containing voting precincts 1, 2 and 31 of the first ward, voting precincts 2, 3, and 4 of the fifth ward, voting precinct 5 of the sixth ward, voting precincts 1, 2, 3, 4, 5, 6, 7, 8 and 15 of the eighth ward, and voting precinct 21 of the ninth ward, voting precincts 3, 18, 19 and 27 of the tenth ward of the City of Louisville.

(40) Fortieth District: That part of Jefferson County containing voting precincts 2 and 4 of the seventh ward, voting precincts 17, 18, 19, 20 and 21 of the eighth ward, voting precincts 8, 10, 11, 12, 13, 14A, 15A, 16, 17 and 18 of the ninth ward, and voting precincts 22, 23, 24, 25 and 26 of the tenth ward of the City of Louisville, and voting precincts C9, C25, C27, C35, C51, C63 and C68 of C District of the County.

(41) Forty-first District: That part of Jefferson County containing voting precincts 1, 2, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17, 20, 21 and 28 of the tenth ward, voting precincts 1, 5, 9, 18, 19, 20 and 21A of the eleventh ward of the City of Louisville.

(42) Forty-second District: That part of Jefferson County containing voting precincts 1, 2, 3, 4, 5, 6, 7A, 9, 19 and 20 of the ninth ward, voting precincts 8, 10, 11, 12, 13, 14, 15, 16 and 17 of the eleventh ward, and voting precincts 21, 22, 23, 24 and 25 of the twelfth ward of the City of Louisville.

(43) Forty-third District: That part of Jefferson County containing voting precincts 2, 3, 4, 6 and 7 of the eleventh ward, and voting precincts 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11A, 12, 13, 14, 15, 16A, 17, 18, 19 and 20 of the twelfth ward of the City of Louisville.

(44) Forty-Fourth District: That part of Jefferson County containing voting precincts C1, C2, C3, C4, C10, C13, C15, C20, C26, C28, C29, C36, C37, C38, C41, C48, C49, C52, C62, C76, C77, C86, C92 and C93 of C district of the county.

(45) Forty-fifth District: That part of Jefferson County containing voting precincts B23, B63, and B66 of the B district of the county; voting precincts C12, C14, C16, C17, C22, C32, C42, C61, C83, C84 and C89 of C District of the county.

(46) Forty-sixth District: That part of Jefferson County containing voting precincts B20, B25, B26, B36, B37, B40, B41, B44, B46, B47, B49, B50, B51, B52, B53, B57, B60, B61, B62, B65 and B69 of B district of the county.

(47) Forty-seventh District: That part of Jefferson County containing voting precincts A4, A6, A8, A12, A13, A15, A16, A20, A21, A23, A24, A25, A27, A28, A31, A32, A33, A35, A37, A41, A42, A45, A46, A53, A58, A64, A68, A69, A71, A72, A77, A80 and A81 of A district of the county.

(48) Forty-eighth District: That part of Jefferson County containing voting precincts A1, A3, A7, A9, A10, A11, A14, A30, A40, A44, A47, A48, A52, A54, A55, A56, A57, A59, A61, A62, A65, A66, A67, A70, A75, A76, A78 and A79 of A district of the county.

(49) Forty-ninth District: Bullitt and Spencer Counties.

(50) Fiftieth District: Nelson County; that part of Washington County not contained in the Fifty-fourth District; that part of Anderson County contained in voting precincts 9, 10, 11.

- (51) Fifty-first District: Green and Taylor Counties, and that part of Metcalfe County not contained in the Twenty-third District.
- (52) Fifty-second District: Adair and Casey Counties and that part of Russell County not contained in the Fifty-third District.
- (53) Fifty-third District: Wayne, Clinton and Cumberland Counties; that part of Russell County contained within the County Census Division of Eli bounded by: State Highway 80; county line, Lake Cumberland, Caney Creek, Caney Fork, Clear Fork, Dunbar Trail, Dunbar Road, West Wilson Road, State Highway 80, that part of Russell County contained within the County Census Division of Bryan bounded by: State Highway 92, Greasy Creek, Bethel Creek Fork, Blankenship Road, State Highway 55, Helen Road, State Highway 35, county line.
- (54) Fifty-fourth District: Boyle County; that part of Marion County contained in voting precincts 1, 2, 3, 7; that part of Washington County contained in voting precincts 5, 6, 7, 8, 9, 10.
- (55) Fifty-fifth District: Garrard and Mercer Counties; that part of Anderson County not contained in the Fiftieth District.
- (56) Fifty-sixth District: Jessamine and Woodford Counties.
- (57) Fifty-seventh District: Franklin County except for the voting precinct of Bridgeport No. 27.
- (58) Fifty-eighth District: Henry and Shelby Counties and that part of Franklin County contained within voting precinct Bridgeport No. 27.
- (59) Fifty-ninth District: Carroll, Gallatin, Oldham, and Trimble Counties.
- (60) Sixtieth District: Boone County.
- (61) Sixty-first District: Bracken, Grant and Owen Counties and Pendleton County except for the voting precincts of Bonar and Sandsuck.
- (62) Sixty-second District: Harrison and Scott Counties.
- (63) Sixty-third District: That part of Kenton County containing the following voting precincts: *Crestview* [Crestwood], Edgewood 1, 2 and 3; Elsmere 4; Erlanger 1, 2, 3, and 7; Fort Mitchell 1, 2, 3, 4, 5 and 6; Fort Wright 1, 2, 3, 4 and 5; Lakeside Park 1, 2, and 3; Park Hills 1, 2 and 3; and Sandfortown.
- (64) Sixty-fourth District: That part of Kenton County containing the following voting precincts: Bracht, Cherokee, Covington 26, 27, 29, 30, 40, 41, 42 and 43, Decoursey, Independence 1 and 2, Morningview, Nicholson, Oakridge, Piner, Richardson, Taylor Mill 1 and 2, Visalia, Whites Tower, Winston Park.
- (65) Sixty-fifth District: That part of Kenton County containing the following voting precincts: Covington 12, 14, 15, 17, 18, 19, 20, 20A, 23, 24, 25, 31, 33, 34, 35, 36, and 39.
- (66) Sixty-sixth District: That part of Kenton County containing the following voting precincts: Covington 6, 7, 10, 10A and 13, Bromley, Crescent Springs, Elsmere 1, 2, and 3, Erlanger 4, 5, 6, 8 and 9, Ludlow 1, 2, 3, 4 and 5, Villa Hills 1 and 2.
- (67) Sixty-seventh District: That part of Campbell County containing all of the voting precincts in the City of Newport, the City of Wilder, the City of Southgate except voting precinct Southgate B; that part of Kenton County containing voting precincts Covington 1, 3.
- (68) Sixty-eighth District: That part of Campbell County containing all the voting precincts in the City of Bellevue; all the voting precincts in the City of Dayton; voting precincts A, B, C, D, E, G, L and P in the City of Fort Thomas and the voting precincts of Woodlawn, Brent, Crestview, Silver Grove, Hayfield, Carthage, Camp Springs and Melbourne.
- (69) Sixty-ninth District: That part of Campbell County not contained in the Sixty-seventh and Sixty-eighth Districts; that part of Pendleton County contained in the voting precincts of Bonar and Sandsuck.
- (70) Seventieth District: Mason and Robertson Counties; that part of Fleming County not in the Seventy-fourth District; that part of Rowan County contained in Census Enumeration District 3 bounded by Bath County line, Triplett Creek, Morehead City limits, Kentucky Highway 32, Fleming County line.
- (71) Seventy-first District: Morgan and Menifee Counties; that part of Rowan County not contained in the Seventieth District; the Northern part of Wolfe County bounded by Kentucky Highway 15, Campton City limits, Kentucky Highway 746, Mountain Parkway Extension, Morgan County line, Menifee County line, Powell County line, including the City of Campton.
- (72) Seventy-second District: Bourbon County and that part of Fayette County not contained in the Seventy-fifth District, the Seventy-sixth, Seventy-seventh, Seventy-eighth and Seventy-ninth Districts.
- (73) Seventy-third District: Clark and Powell Counties.
- (74) Seventy-fourth District: Bath, Nicholas and Montgomery Counties, and that part of Fleming County contained in Census Enumeration District 9 bounded by county line, Three Mile Run, State Highway 1325 (Three Mile Road), Cane Road, State Highway 1123 (Peck's Ridge Road), State Highway 57, Craitown Road, and State Highway 32 westward to county line.
- (75) Seventy-fifth District: That part of Fayette County contained within the following described boundaries: Beginning at the intersection of South Broadway and Mason Headley Road; then with the center line of South Broadway in a northeastwardly direction to the intersection of South Broadway and Virginia Avenue; then in a northwestwardly direction with the western boundary of the Kentucky Trotting Horse Breeders Association property (Red Mile) to the Versailles Pike across from the intersection of Forbes Road;

then in a generally northwardly direction with the center line of Forbes Road to its intersection with the Old Frankfort Pike to its intersection with Leestown Pike (West Main Street); then in a southeastwardly direction with the center line of West Main Street to its intersection with Newtown Pike; then in a northwestwardly direction with the center line of Newtown Pike to its intersection with West Fourth Street; then in a southeastwardly direction with the center line of West Fourth Street to the Louisville and Nashville Railroad Company crossing; then in a northeastwardly direction with the center line of the right-of-way of the Louisville and Nashville Railroad Company to its crossing of the Russell Cave Pike (Ky 353); then in a generally southwardly direction along the center line of the Russell Cave Pike to Louden Avenue; then in a southeastwardly direction with the center line of Louden Avenue to its intersection with Maple Avenue; then in a southeastwardly direction with the center line of Maple Avenue to its intersection with East Seventh Street and in a southeastwardly direction along the center line of East Seventh Street to its intersection with Shropshire; then in a southwestwardly direction with the center line of Shropshire Avenue to East Sixth Street and in a northwestwardly direction with the center line of East Sixth Street to its intersection with Pemberton; then in a southwestwardly direction with the center line of Pemberton to its intersection with East Fifth Street; then in a southeastwardly direction with the center line of East Fifth Street to its intersection with Race Street and in a southwestwardly direction with the center line of Race Street to its intersection with East Third Street; then in a southeastwardly direction with the center line of East Third Street to its intersection with Walton Avenue; then in a southwestwardly direction with the center line of Walton Avenue to its intersection with East Main Street and in a northwestwardly direction with the center line of East Main Street to its intersection with Ransom Avenue; then in a southwestwardly direction with the center line of Ransom Avenue to its intersection with East High Street and in a generally southwardly direction with the center line of East High Street to its intersection with Sunset, then in a northwestwardly direction with the center line of Sunset to Lafayette Avenue and continuing along the center line of Columbia (Sunset) to its intersection with Woodland Avenue and in a southwestwardly direction with the center line of Woodland Avenue to its intersection with Huguelet and in a northwestwardly direction along the center line of Huguelet to its intersection with Rose Street and in a southwestwardly direction with the center line of Rose Street to its intersection with South Limestone; then continuing in a southwestwardly direction along the center line of South Limestone to its intersection of Waller Avenue and then in a northwestwardly direction along the center line of Waller Avenue to its intersection with South Broadway and the Mason Headley Road, the point of beginning.

(76) Seventy-sixth District: That part of Fayette County contained within the following boundaries: Beginning at the intersection of East Third Street and Race Street; then in a southeastwardly direction along the center line of East Third Street to a point opposite the northwest property line of Richmond Avenue; then in a southwestwardly direction with said property line of Richmond Avenue to East Main Street and then in a southeastwardly direction along the center line of East Main Street to its intersection with Henry Clay Boulevard; then in a northeastwardly direction with the center line of Henry Clay Boulevard to its intersection with Meniffee Avenue and in a southeastwardly direction with the center line of Meniffee Avenue to a point in the southeast property line of Holiday Road; then with said property line of Holiday Road to the Chesapeake and Ohio Railroad tracks; then in a southeastwardly direction with the right-of-way of the Chesapeake and Ohio Railroad to the New Circle Road (Ky 4); then in a generally northwardly direction along the center line of the New Circle Road to its intersection with the Winchester Pike (US 60); then in a generally eastwardly direction with the center line of the Winchester Pike to its intersection with Interstate 64-75; then in a northwestwardly direction with the right-of-way of Interstate 64-75 to its overpass on the Russell Cave Pike (Ky 353); then in a southwestwardly direction with the center line of Russell Cave Pike to its intersection with the New Circle Road; then in a southeastwardly direction with the center line of New Circle Road to its intersection with the Old Paris Pike (North Limestone); then in a southwestwardly direction with the center line of North Limestone to its intersection with Carlisle Avenue; then in a southeastwardly direction along the center line of Carlisle Avenue to its intersection of Bryan Avenue; then in a southwestwardly direction with the center line of Bryan Avenue to its intersection with Louden Avenue; then in a southeastwardly direction with the center line of Louden Avenue to its intersection with Maple Avenue; then in a southwestwardly direction with the center line of Maple Avenue to East Seventh Street; then in a southeastwardly direction along the center line of East Seventh Street to Shropshire; then in a southwestwardly direction along the center line of Shropshire to East Sixth Street; then in a northwestwardly direction along the center line of East Sixth Street to Pemberton; then in a southwestwardly direction the center line of Pemberton to East Sixth Street; then in a southeastwardly direction with the center line of East Fifth Street to Race Street; then in a southwestwardly direction along the center line of Race Street to its intersection with East Third Street, the point of beginning.

(77) Seventy-seventh District: That part of Fayette County contained within the following boundaries: Beginning at the intersection of the Versailles Road (US 60) and the New Circle Road (Ky 4); then with the New Circle Road in a generally northeastwardly direction to the following intersections: Old Frankfort Pike, Leestown Pike, Georgetown Pike, Newtown Pike, Russell Cave Pike and North Broadway to its intersection with the Old Paris Pike (North Limestone); then in a southwestwardly direction along the center line of North Limestone to Carlisle Avenue; then in a southeastwardly direction with the center line of Carlisle Avenue to Bryan Avenue; then in a southwestwardly direction with the center line of Bryan Avenue to its intersection with

Louden Avenue and in a northwestwardly direction with the center line of Loudon Avenue to its intersection with Russell Cave Pike and in a generally northwardly direction with the center line of the Russell Cave Pike to the Louisville and Nashville Railroad crossing; then in a southwestwardly direction with the right-of-way with the Louisville and Nashville Railroad to West Fourth Street; then in a northwestwardly direction along the center line of West Fourth Street to the Newtown Pike and in a southwestwardly direction the center line of the *Newtown* [Newton] Pike to West Main Street; then in a northwestwardly direction with West Main Street (Leestown Pike) to Forbes Road; then in a southwestwardly direction the center line of Forbes Road to the Versailles Road and across the Versailles Road and along the western property line of the Kentucky Trotting Horse Breeders Association (Red Mile) to South Broadway and in a southwestwardly direction along the center line of South Broadway to Clays Mill Road and continuing in a southwestwardly direction along the center line of Clays Mill Road to Longview Drive; then in a northwestwardly direction along the center line of Longview Drive to the Harrodsburg Road; then in a northeastwardly direction along the center line of the Harrodsburg Road to the Lane Allen Road and in a northwestwardly direction along the center line of Lane Allen Road to Garden Springs Drive; then in a southwestwardly direction along the center line of Garden Springs Drive to Cypress Drive; then in a southeastwardly direction along Cypress Drive to Poppy Lane; then in a southwestwardly direction along a line extended from the end of Poppy Lane to the point opposite Aster Road and in a southeastwardly direction along a line extending from the end of Aster Road to the Harrodsburg Road and in a southwestwardly direction along the center line of the Harrodsburg Road to the New Circle Road and in a northwestwardly direction along the center line of New Circle Road to a point opposite the center line of Lansill Road and in a northeastwardly direction along the center line of Lansill Road to a point on the Lane Allen Road; then continuing in a northeastwardly direction along the center line of Traveller Road to the northwest property line of Antietam Road; then in a generally northwardly direction along the line between the rear property lines of Traveller Road and Alexandria Drive to the Parkers Mill Road; then continuing in a generally northwardly direction along the center line of the Parkers Mill Road to Versailles Road; then in a westwardly direction along the center line of Versailles Road to the New Circle Road, the point of beginning.

(78) Seventy-eighth District: That part of Fayette County contained within the following boundaries: Beginning on Versailles Pike (US 60) at the Woodford County line; then eastwardly with the center line of the Versailles Pike to the intersection with the New Circle Road, then continuing along the Versailles Pike to Parkers Mill Road; then in a generally southwardly direction along the center line of Parkers Mill Road and continuing in a southerly direction along the rear property lines of Traveller Road and Alexandria Drive to the northwestwardly property line of Antietam Road and in a southwestwardly direction with said property line of Antietam Road to the center line of Traveller Road and with the center line of Traveller Road to the Lane Allen Road; then in a southwestwardly direction to the center line of Lansill Road, continuing along the center line of Lansill Road and on to New Circle Road and in a southeastwardly direction along the center line of the New Circle Road to the Harrodsburg Road and in a northeastwardly direction along the center line to the Harrodsburg Road to a point opposite Aster Road and in a northwestwardly direction along a line to a point opposite Poppy Lane; then in a northeastwardly direction along a line to the end of Poppy Lane and continuing on the center line of Poppy Lane to Cypress Drive; then in a northwestwardly direction along the center line of Cypress Drive to Garden Springs Drive; then in a northeastwardly direction along the center line of Garden Springs Drive to Lane Allen Road; then in a southeastwardly direction along the center line of Lane Allen Road to the Harrodsburg Road and in a southwestwardly direction along the center line of the Harrodsburg Road to Longview Drive; then in a southeastwardly direction along the center line of Longview Drive to Clays Mill Road; then in a northeastwardly direction along the center line of Clays Mill Road to Harrodsburg Road continuing in a northeastwardly direction along the center line of the Harrodsburg Road to its intersection of Waller Avenue; then in a southeastwardly direction along the center line of Waller Avenue to South Limestone; then in a northeastwardly direction along the center line of North Limestone to Rose Street continuing in a northeastwardly direction along the center line of Rose Street to Huguelet, then in a southeastwardly direction along the center line of Huguelet to Woodland Avenue; then in a northeastwardly direction along the center line of Woodland Avenue to Columbia Avenue; then in a southeastwardly direction along the center line of Columbia Avenue to Lafayette Avenue and continuing along the center line of Sunset (Columbia Avenue) to the Bates Creek Pike; then in a generally southerly direction along the center line of Bates Creek Pike to Lansdowne Drive; then in a southwestwardly direction along the center line of Lansdowne Drive to Zandale Drive; then in a northwestwardly direction along the center line of Zandale Drive to South Limestone (Nicholasville Pike); then in a southwestwardly direction along the center line of Nicholasville Pike to the Wilson-Downing Road; then in a southeastwardly direction along the center line of the Wilson-Downing Road to the Bates Creek Pike (Ky 1974); then in a generally southerly direction along the center line of the Bates Creek Pike to the Fayette County line; then along the Fayette County line in a generally northwestwardly direction to the Versailles Pike (US 60), the point of beginning.

(79) Seventy-ninth District: That part of the county of Fayette contained within the following boundaries: Beginning at the Kentucky River at the landing of Bates Creek Pike; then in a generally northwestwardly direction along the center line of the Bates Creek Pike to the Wilson-Downing Road; then continuing in a northwestwardly direction along the center line of the Wilson-Downing Road to the

Nicholasville Road and in a northeastwardly direction along the center line of the Nicholasville Road (South Limestone) to Zandale Drive; then in a southeastwardly direction along the center line of Zandale Drive to Lansdowne Drive; then in a northeastwardly direction along the center line of Lansdowne Drive to Bates Creek Pike; then in a generally northwardly direction along the center line of Bates Creek Pike (East High Street) to Ransom Avenue and in a northeastwardly direction along the center line of Ransom Avenue to East Main Street and in a southeastwardly direction along the center line of East Main Street to Walton Avenue, then in a northwestwardly direction along the center line of Walton Avenue to East Third Street; then in a southeastwardly direction along the center line of East Third Street to a point opposite the northwestern property line of Richmond Avenue; then in a southwestwardly direction along said property line of Richmond Avenue to East Main Street and in a southeastwardly direction with the center line of East Main Street to Henry Clay Boulevard and in a northeastwardly direction with the center line of Henry Clay Boulevard to Menifee Avenue and in a southeastwardly direction along the center line of Menifee Avenue to a point in the southeastern property line of Holiday Road; then in a northeastwardly direction along said property line of Holiday Road to the Chesapeake and Ohio Railroad tracks and in a southeastwardly direction with the right-of-way of the Chesapeake and Ohio Railroad to the New Circle Road; then in a generally northerly direction along the center line of the New Circle Road to the Winchester Pike (US 60) and in a generally eastwardly direction along the Winchester Pike to the Interstate 64-75 interchange; then in a northwestwardly direction with the right-of-way of Interstate 64-75 to the Bryan Station Pike (Ky 956) and in a northwestwardly direction along the center line of the Bryan Station Pike to the Muir Station Pike; then in a southeastwardly direction along center line of the Muir Station Pike to the Briar Hill Pike; then in a northeastwardly direction along the center line of the Briar Hill Pike to the Bourbon County line; then following the Fayette County line in a generally southerly direction to the Kentucky River and along the Kentucky River to the Bates Creek Pike, the point of beginning.

(80) Eightieth District: Lincoln and Rockcastle Counties and that part of Pulaski County contained within the following voting precincts: Eubank 25, Estesburg 26, Hazeldell 27, Good Hope 28 and Catron 31.

(81) Eighty-first District: That part of Madison County not contained in the Eighty-fourth District.

(82) Eighty-second District: Whitley County; that part of McCreary County contained within the County Census Division of Pine Knot bounded by: Blue Heron Road extended, Blue Heron Road, State Highway 742, U. S. Highway 27, Laurel Creek, Marsh Creek, Duck Run, county line, state line, South Fork Cumberland River; that part of McCreary County contained within the County Census Division of Cooperative bounded by: South Fork Cumberland River, [South Fork Cumberland River,] state line, county line; that part of McCreary County contained within the County Census Division of Stearns bounded by: Lick Creek, Bridge Fork, Laurel Creek, [Laurel Creek,] U. S. Highway 27, State Highway 742, Blue Heron Road, Blue Heron Road extended, South Fork Cumberland River.

(83) Eighty-third District: That part of Pulaski County not contained in the Eightieth District.

(84) Eighty-fourth District: Estill and Jackson Counties and that part of Madison County contained in the City of Berea and in voting precincts 19 and 20.

(85) Eighty-fifth District: Laurel County and that part of McCreary County not contained in the Eighty-second District.

(86) Eighty-sixth District: Knox County; that part of Clay County contained in voting precincts 1, 7, 8, 12, 14, 15.

(87) Eighty-seventh District: Bell County and that part of Harlan County contained in voting precinct Pathfork 41.

(88) Eighty-eighth District: That part of Harlan County not contained in the Eighty-seventh and Ninetieth Districts.

(89) Eighty-ninth District: Breathitt and Lee Counties and that part of Wolfe County not contained in the Seventy-first District, and that part of Perry County contained in Census County Division of Big Creek, Blue Diamond Buckhorn, Yerkes-Busy and Krypton lying north and east of the following boundary: Leslie County line, Big Creek-Right Fork Divide, Buffalo Fork Big Creek-Buffer Creek Divide, Brown's Fork-Buffer Creek Divide, Messer Branch-Davidson Branch Divide, Happy Hollow, Hazard City limits, Walker Branch-North Fork Kentucky River Divide; Laurel Fork-Lost Creek-First Creek Divide, Sixteenmile Creek-Lower Second Creek Divide, Lost Creek, Grapevine Creek Divide, Tenmile Creek-Grapevine Creek Divide, Breathitt County line, Owsley County line, and Clay County line.

(90) Ninetieth District: Leslie and Owsley Counties, and that part of Harlan County contained in the voting precincts of Pine Mountain-Big Laurel No. 11, Bledsoe No. 12, New Baxter No. 9, Old Baxter No. 8, School House Loyall No. 35, City Hall Loyall No. 34, Rio Vista No. 36, and Putney No. 10, and that part of Clay County contained in voting precincts 2, 3, 4, 5, 6, 9, 10, 11, 13.

(91) Ninety-first District: That part of Perry County not contained in the Eighty-ninth district, and that part of Letcher County not contained in the Ninety-second district.

(92) Ninety-second District: Knott and Magoffin Counties; that part of Letcher County contained in Census County Division of Blackey, Colson, Fleming-Neon, and Census Enumeration Districts 21 and 22, lying northwest of the following boundary: Perry County line, Turkey Creek-Defeated Creek Divide, Whittaker

Branch Road, Tolson Branch Road, Kentucky Highway 588, Mills Branch Road, Mills Branch Spur Road, Rockhouse Creek-Smoot Creek Divide, Kentucky Highway 15, Smoot Creek-Dry Fork Divide, Rockhouse Creek-North Fork Kentucky River Divide, Millstone Creek Road, Kentucky Highway 803, State Highway 113, North Fork Kentucky River, U. S. Highway 119, Seco City limits, U. S. Highway 119, Jenkins City limits, McRoberts City limits, Fleming City limits, and from Hemphill-Jackhorn P.O. due north to Pike County line, including the cities of Seco and Fleming.

(93) Ninety-third District: That part of Pike County contained in voting precincts Caney 20, Yeager 21, Old Shelby 22, Long Fork 23, Dorton 24 and Elmwood in District 2; Marrowbone 30, Rockhouse 31, Henry Clay 32, Hellier 33, Ashcamp 34 and Rasnick 35 in District 3; Millard 40, Lick Creek 42, Grapevine 43, and Garden Village 46 in District 4; Raccoon 51 in District 5; Peter 70, Blackberry 71, Knox 72, Freeburn-Cline 73, Wolford 74, Bluesprings 75, Majestic 76 in District 7; Mouthcard 80, Upper Elkhorn 81, Elkhorn City Hall 82, Belcher 83, Feds Creek 84, Looney 85 in District 8.

(94) Ninety-fourth District: That part of Pike County not contained in the Ninety-third District; that part of Floyd County not contained in the Ninety-fifth District.

(95) Ninety-fifth District: Floyd County except for the voting precincts Herold, Toler Creek, Antioch, Branhams Creek, Head of Mud, Tickey.

(96) Ninety-sixth District: Carter and Lewis Counties.

(97) Ninety-seventh District: Johnson and Martin Counties, and that part of Lawrence County contained in voting precincts 7, 9, 10, 11, 12, 13 and 14.

(98) Ninety-eighth District: That part of Greenup County not contained in the Ninety-ninth District.

(99) Ninety-ninth District: Elliott County; that part of Lawrence County contained in voting precincts 1, 2, 3, 4, 5, 6, and 8; that part of Boyd County containing the following voting precincts: Court House 1, City Building 2, Argo 3, Hampton 4, Rockdale 5, England Hill 7, Durbin 8, East Fork 9, Cannonsburg 10, Princess 11, Garner 12, Hoods Creek 13, Fairview 14, Buckley 15, Westwood 16, Millseat 17; that part of Greenup County contained in Census Enumeration District 10, known as Bellefonte City, bounded by county line, Country Club Drive (State Highway 693) to its junction with State Highway 1725, then southeasterly to the county line.

(100) One hundredth District: That part of Boyd County not contained in the Ninety-ninth District.

Section 2. KRS 6.041 is amended to read as follows:

Any reference in KRS 6.011 and 6.031 to a city, ward, district, boundary, precinct, road, highway, street, stream or other line means as they existed on January 4, 1972.

Section 3. KRS 7.115 is amended to read as follows:

The chairmen and members of the interim subcommittees of the Legislative Research Commission may, subject to the approval of the commission, appear and testify before committees of the Congress of the United States on all matters involving Federal-State relations and on matters which concern the authority or interests of the states. The chairmen and members of the interim subcommittees shall receive the same travel expenses and compensation for appearing before Congressional committees as they receive for attending meetings of their respective interim subcommittees.

Section 4. KRS 18.110 is amended to read as follows:

As used in KRS 18.110 to 18.360 [18.340], unless the context indicates otherwise:

(1) 'Appointing officer' means the officer or employee or group of officers or employees authorized by law to make appointments;

(2) 'Board' means the personnel board created by KRS 18.160;

(3) 'Certification' means the referral of the name of a qualified prospective employee by the commissioner of personnel on request of an appointing officer for selection to a position in the classified service;

(4) 'Class' means a group of positions sufficiently similar as to duties performed, scope of discretion and responsibility, minimum requirements of training experience, or skill, and such other characteristics that the same title, the same tests of fitness, and the same schedule of compensation have been or may be applied to each position in the group;

(5) 'Classified service' includes all the employment subject to the terms of this chapter except for those positions expressly cited in KRS 18.140; a 'classified position' is a position in the classified service;

(6) 'Demotion' means a change in the rank of an employee from a position in one (1) class to a position in another class having a lower minimum salary range and less discretion or responsibility;

(7) 'Department' means the department of personnel provided for in KRS 18.160 unless the context indicates otherwise;

(8) 'Eligible' refers to a person who has made a passing score on any examination required under KRS 18.110 to 18.360 [18.340] and who has qualified to be placed on a register;

(9) 'Emergency employee' means an employee appointed without regard to the examination requirements of KRS 18.110 to 18.360 [18.340] to a temporary position by reason of a governmental emergency recognized by the governor, whose appointment is not to exceed thirty (30) working days in duration and is nonrenewable;

(10) 'Employee' means a person regularly appointed to a position in the state service for which he is

compensated on a full-time or part-time basis;

(11) 'Position' means an office or employment in an agency (whether part-time, full-time, temporary or permanent, occupied or vacant) involving duties requiring the services of one (1) person;

(12) 'Probation' means the period of service following appointment to any position under KRS 18.110 to 18.360 [18.340] which requires special observation and evaluation of an employee's work and which must be passed successfully before status may be conferred as provided in KRS 18.210. An employee serving the probationary period is known as a 'probationary employee';

(13) 'Promotion' means a change of rank of an employee from a position of one (1) class to a position of another class having a higher minimum salary and carrying a greater scope of discretion or responsibility;

(14) 'Provisional employee' means any employee appointed on a temporary or interim basis to a permanent position under KRS 18.110 to 18.360 [18.340] without examination, such appointment being made necessary by the absence of a register for the position involved and by the time limitations and prohibition on renewal as defined in KRS 18.210;

(15) 'Re-employment list' means the separate list of names of persons reduced in force by reason of lack of appropriations, curtailment of program or abolishment of organizational unit, and through no fault of their own, who have requested the opportunity for further consideration of state employment. Re-employment lists are used as provided in KRS 18.210;

(16) 'Register' means any official list of eligibles for a particular class placed in rank order according to the examination records, which shall be used for selection for promotion or original appointment to a position in the classified service;

(17) 'Status' means the acquisition of tenure with all rights and privileges appertaining thereunto after satisfactory completion of the probationary period by an employee in the classified service;

(18) A 'temporary position' is one created for a defined period of time not to exceed six (6) months in any event and not renewable; a 'temporary employee' is one (1) appointed to such temporary position, either from an existing pertinent eligible list or without reference to an eligible list. A 'seasonal position,' although temporary in duration in the foregoing sense coincides in duration with a particular season or seasons of the year and may recur regularly from year to year; a 'seasonal employee' is one (1) appointed to such a seasonal position from an existing eligible list or without reference to an eligible list;

(19) 'Transfer' means a movement of any employee from one (1) position to another of the same grade having the same salary ranges and the same level of responsibility within the classified service.

Section 5. KRS 18.120 is amended to read as follows:

The general purpose of KRS 18.110 to 18.360 [18.340] is to establish for the state a system of personnel administration based on merit principles and scientific methods governing the recruitment, examination, appointment, promotion, transfer, lay-off, removal, discipline, and welfare of its civil employees and other incidents of state employment. All appointments and promotions to positions in the state civil service shall be made solely on the basis of merit and fitness, to be ascertained by competitive examination, except as hereinafter specified. The general assembly finds that this chapter is necessary in order to improve the morale and motivation of state employees and to gain the maximum utilization of human resources in order to provide better service to the citizens of this commonwealth.

Section 6. KRS 18.130 is amended to read as follows:

(1) The classified service to which KRS 18.110 to 18.360 [18.340] shall apply shall include all employees of the department of fish and wildlife resources, and all other positions in the state civil service now existing or hereafter established, except as provided in KRS 18.140.

(2) (a) The department of personnel and departments, commissions, boards or agencies presently covered by merit systems shall come under the provisions of KRS 18.110 to 18.340 as of July 1, 1960.

(b) Each head of a department, commission, board or agency shall certify to the governor at any time after July 1, 1960, but no later than July 1, 1961, that his department, commission, board or agency is ready to come under the provisions of KRS 18.110 to 18.340. Upon receipt of such certification, the governor shall approve said certification and so inform the personnel board.

Section 7. KRS 18.140 is amended to read as follows:

(1) The classified service to which KRS 18.110 to 18.360 [18.340] shall apply shall comprise all positions in the state service now existing or hereafter established, except the following:

(a) The general assembly and employees of the general assembly including the employees of the legislative research commission;

(b) Officers elected by popular vote and persons appointed to fill vacancies in elective offices;

(c) Members of boards and commissions;

(d) Officers and employees on the staff of the governor and the lieutenant governor;

(e) Heads of departments, including those appointed by boards and commissions except as provided in KRS 18.130;

(f) One (1) principal assistant or deputy for each head of a department except as provided in KRS 18.130;

(g) One (1) additional principal assistant or deputy, or other major assistants as may be necessary for

making and carrying out policy, for each head of a department in those instances in which the nature of the functions, size or complexity of the agency involved are such that the personnel board may approve such an addition or additions on petition approved by the commissioner of personnel;

(h) Division directors, except as provided in KRS 18.130, subject to the provisions of KRS 18.150;

(i) Physicians employed as such by the state tuberculosis hospital commission and the department of mental health;

(j) One (1) private secretary for each head of a department and for each principal assistant or deputy not included in the classified service;

(k) The judicial department, referees, receivers, jurors, and notaries public;

(l) Officers and members of the staffs of state universities and colleges and student employees of such institutions, provided that said institutions shall establish and implement a personnel system embodying the principles in KRS 18.110 to 18.360 [18.340] applicable to faculty members and staff; and officers, teachers, and employees of local boards of education;

(m) Patients or inmates employed in state institutions;

(n) Persons employed in a professional or scientific capacity to make or conduct a temporary or special inquiry, investigation, or examination on behalf of the general assembly, or a committee thereof, or by authority of the governor;

(o) Unskilled laborers, truck drivers and other light equipment operators, excepting institutional employees of the unskilled laborer category, and seasonal and emergency employees. The personnel board shall determine the positions within these categories and shall promulgate rules relating thereto;

(p) Officers and members of the state militia;

(q) Peace officers in the department of public safety, Provided that said department shall maintain a personnel system embodying the principles herein applicable to peace officers.

(2) Nothing in KRS 18.110 to 18.360 [18.340] is intended, or shall be construed, to alter or amend the provisions of KRS 150.022 and KRS 150.061.

(3) Provided, however, that nothing herein is intended or shall be construed to affect any position which must be included in the classified service as a prerequisite to the grant of federal funds to a state agency.

(4) Classified employees with status promoted to positions exempted from classified service may, upon termination of their employment in the exempted service, revert to their classified status, but not necessarily to a particular position in the classified service.

(5) Nothing herein shall be construed as precluding appointing officers from filling nonclassified positions in the manner in which positions in the classified service are filled except as otherwise provided herein.

Section 8. KRS 18.150 is amended to read as follows:

It is further provided that the responsible departmental, board, commission or agency head shall at the time at which he elects to come under the provisions of KRS 18.110 to 18.360 [18.340], certify to the personnel board the positions of those division directors or heads under their jurisdiction whose duties are nonpolicy making together with a sufficient statement of their duties to enable the board to determine whether or not, as a matter of fact, such duties are nonpolicy making in their nature. He shall, at any time subsequent to coming under the provisions of KRS 18.110 to 18.360 [18.340] certify to the personnel board additional division directors or heads whose duties are nonpolicy making. At the time of certification notice thereof shall be given to the interested division director or head in the form of a copy of the statement certifying the duties of his office. The board may conduct such hearings as it may deem necessary, and shall conduct hearings pursuant to the administrative provisions of KRS 18.270 in the event of a difference of opinion between the certifying officer and the interested division director or head, before entering its findings of fact and an order either classifying or denying classification to such position. Either the certifying officer or the division director or head may appeal the findings of fact and the final order of the board by initiating action in the Franklin Circuit Court pursuant to the provisions of KRS 418.040 et seq.

Section 9. KRS 18.160 is amended to read as follows:

(1) There shall be created by KRS 18.110 to 18.360 [18.340] a department of personnel headed by a commissioner who shall be appointed by the Governor. There shall also be created a personnel board in which shall be vested the constitutional powers and responsibilities of officers of the commonwealth. The personnel board shall consist of five (5) members appointed by the governor for four (4) year terms, and the governor shall select citizens of Kentucky known for their devotion to the merit principle in government employment and the improvement of management and professional development of the public service of the state. No member of the personnel board shall be otherwise an employee or officer of the commonwealth except faculty or staff members of the University of Kentucky or the state universities or colleges. No member of the personnel board shall be a member of any local, state, or national committee of a political party, or an officer or member of a committee in any partisan political club or organization, or shall be or have been a candidate for any elective office within one (1) year prior to appointment. Members of the personnel board shall receive compensation of forty dollars (\$40.00) per diem and reimbursements of travel expenses and other special expenses for each called meeting of the board which they attend. If any board member misses three (3) consecutive meetings for any reason other than illness or temporary absence from the commonwealth, he shall be deemed to have vacated his office and

the governor shall proceed forthwith to appoint a successor to his unexpired term.

(2) The members of the first board shall be appointed by the governor within thirty (30) days of July 1, 1960. Of the members first appointed, one (1) shall serve until January 1, 1961, one (1) until January 1, 1962, one (1) until January 1, 1963, and two (2) until January 1, 1964. Thereafter, each term shall run for four (4) years from the date of expiration of the term for which his predecessor was appointed, except that a person appointed to fill a vacancy prior to the expiration of such a term shall be appointed for the remainder of the term. Each member of the board shall hold office until his successor is appointed and qualifies.

(3) Members of the personnel board may be removed by the governor only for cause after being given a copy of charges against them and an opportunity to be heard publicly, with the advice of counsel, on such charges against them before the governor and a finding of fact by the governor. A copy of the charges and transcript of the record of the hearing and findings of fact shall be filed with the secretary of state.

(4) The personnel board shall annually elect one (1) of its members chairman. It shall meet at such time and place as shall be specified by call of the chairman or the commissioner of personnel. At least one (1) meeting shall be held each month. All meetings shall be open to the public. Notice of each meeting shall be given in writing to each member by the commissioner of personnel at least three (3) days in advance of the meeting. Three (3) voting members shall constitute a quorum for the transaction of business. The personnel board shall keep records and minutes of its business and official actions, with the commissioner of personnel serving as secretary. Such minutes shall be public records open to public inspection, subject to such reasonable rules as to hours and conditions of inspection as the board may establish. It shall be the duty of the officer or officers charged by law with the custody of the state buildings, upon written request of the personnel board, to assign suitable office space for executing the duties charged to it and to the commissioner of personnel.

Section 10. KRS 18.170 is amended to read as follows:

It shall be the duty of the personnel board to:

(1) Adopt comprehensive rules consistent with the provisions of KRS 18.110 to 18.360 [18.340], and with federal standards for the administration of a personnel system in the agencies of the state government receiving federal grants;

(2) Present to the governor, through the commissioner of finance, for his adoption such classification and compensation plans for the state service, provision for vacation, sick and special leave and hours of work, together with rules for their administration, as recommended by the commissioner of personnel and the board after a thorough survey of the personnel and departmental organizations included in such plan or plans;

(3) Make investigations, either on petition of a citizen, taxpayer, interested party, or on its own motion, concerning the enforcement and effect of KRS 18.110 to 18.360 [18.340], and to require observance of its provisions and the rules and regulations made pursuant thereto; and to make such investigation as may be requested by the general assembly or the governor and to report thereon;

(4) Hear appeals from applicants for positions for which examinations are being or have been conducted, from eligibles on examination registers, and from officers or employees serving under the personnel system created by KRS 18.110 to 18.360 [18.340], as hereinafter provided, subject to the procedural rules which the board may adopt pursuant to the provisions of this section;

(5) Promote public understanding of merit principles in government service;

(6) Make annual reports to the governor and biennial reports to the general assembly, which reports shall be a public record freely available to those persons interested in obtaining a copy;

(7) Advise the governor and the commissioner of personnel with respect to the administration of the personnel system created by KRS 18.110 to 18.360 [18.340];

(8) Consider and act on such matters as may be referred to the board by the commissioner of personnel; and

(9) Represent the public interest in the improvement of personnel administration in the state service, and advise and assist the commissioner of personnel in fostering the interest of institutions of learning and of civic, professional, and employee organizations in the improvement of personnel standards in the state service.

Section 11. KRS 18.190 is amended to read as follows:

The commissioner of personnel shall be the executive and administrative head of the department of personnel and shall supervise and control all examinations and work of the department. He shall act as the personnel board's adviser on all matters pertaining to the civil service of this state. Within the limitations of the budget, the commissioner of personnel shall appoint and supervise such staff as may be needed in the department of personnel to carry out the purposes of KRS 18.110 to 18.360 [18.340]. It shall be the duty of the commissioner of personnel, with the aid of his staff to:

(1) Attend all meetings of the personnel board;

(2) Prepare and recommend to the personnel board rules and regulations for the purpose of carrying out the provisions of KRS 18.110 to 18.360 [18.340]. Such rules shall provide, among other things, the manner of completing appointments and promotions, including multiple and simultaneous certifications; rejection of ineligible candidates; competitive examinations; creation of eligible lists with successful candidates ranked according to their rating in the examination; leaves of absence with and without pay; transfers, reinstatements,

lay-offs; public notice of examinations; procedures for changes in rates of pay; and other conditions of employment;

(3) Establish general procedures for personnel recruitment, for certification, for improving the efficiency of employed personnel, and for the separation of employees deemed unsatisfactory or excessive by agency or department heads subject to the provisions of KRS 18.110 to 18.360 [18.340].

(4) Appoint such examiners and technicians as are necessary for the conduct of the personnel program, whether on a permanent or temporary basis;

(5) Prepare and maintain a record of all employees, showing for each employee his name, post office address, title of position held, rate of compensation, changes in status, compensation, or title, transfer, and to make such data and the class specifications for all positions available to the press and public;

(6) Prepare, in accordance with the provisions of KRS 18.110 to 18.360 [18.340] and the rules adopted thereunder, examinations, eligible lists, and ratings of candidates for appointment;

(7) Make certification for appointment or promotion within the classified service, in accordance with the provisions of KRS 18.110 to 18.360 [18.340];

(8) Make investigations concerning all matters touching the enforcement and effect of the provisions of KRS 18.110 to 18.360 [18.340] and rules and regulations prescribed thereunder;

(9) Prepare, in cooperation with appointing authorities and others, programs for appraising employee work performance and prepare, in cooperation with the several departments of the commonwealth in the development of programs for employee training, safety, morale, work motivation, health, counseling, and welfare, and exercise leadership in the development of effective personnel administration within the several departments of the commonwealth, and make available the facilities of the department of personnel to this end;

(10) Provide personnel services to unclassified employees in agreement with the agencies involved not otherwise provided for herein;

(11) Present, in accordance with the provisions of KRS 45.070, budget estimates for the support of the personnel system created by KRS 18.110 to 18.360 [18.340];

(12) Make a report and submit the same to the personnel board and to the governor not later than October first of each year; and

(13) Discharge such other duties as are imposed upon him by KRS 18.110 to 18.360 [18.340], or by the board. The commissioner of personnel on behalf of the department may join or subscribe to any association or service having as its purpose the interchange of information relating to the improvement of the public service and especially improvement of personnel administration.

Section 12. KRS 18.210 is amended to read as follows:

The commissioner of personnel shall prepare and submit to the personnel board proposed rules for the classified service. Such rules shall have the force and effect of law, when approved by the board, after public notice and public hearing. If not disapproved by the board within forty-five (45) days after the submission thereof, they shall have the same force and effect as if approved. Amendments thereto may be made in the same manner, or on the initiative of the board. The rules shall provide:

(1) For the preparation, maintenance and revision of a position classification plan for all positions in the classified service, based upon similarity of duties performed and responsibilities assumed, so that the same qualifications may reasonably be required for and the same schedule of pay may be equitably applied to all positions in the same class. After such classification has been approved by the board, the commissioner shall allocate the position of every employee in the classified service to one (1) of the classes in the plan. Any employee affected by the allocation of a position to a class shall, after filing with the commissioner of personnel a written request for reconsideration thereof in such manner and form as the commissioner may prescribe, be given a reasonable opportunity to be heard thereon by the commissioner;

(2) For a pay plan for all employees in the classified service, after consultation with appointing authorities and the commissioner of finance. The plan shall take into account such factors as (a) the relative levels of duties and responsibilities of various classes of positions; (b) rates paid for comparable positions elsewhere; and (c) the state's financial resources. Such pay plan shall become effective only after it has been approved by the governor after submission to him by the board. Amendments to the pay plan may be made in the same manner. Each employee shall be paid at one (1) of the rates set forth in the pay plan for the class of position in which he is employed;

(3) For open competitive examinations to test the relative fitness of applicants for the respective positions. Such examinations shall be announced publicly at least fifteen (15) days in advance of the date fixed for the filing of applications therefor, and may be advertised through the press, radio and other media. The commissioner shall continue to receive applications and examine candidates on a continuous basis long enough to assure a sufficient number of eligibles to meet the needs of the service, and shall add the names of successful candidates to existing eligible lists in accordance with their respective ratings. The commissioner shall be free to use any investigation of education and experience and any test of capacity, knowledge, manual skill, character, personal traits, or physical fitness which in his judgment serves the need to discover the relative fitness of applicants;

(4) For the granting of appropriate preference in original entrance examinations to qualified persons

who have been members of the armed forces of the United States in time of war, and who were honorably discharged. Such preference shall be in the form of points added to the final passing grades of such persons on original entrance examinations, Provided That they otherwise qualify and are entitled to appear on the list of those eligible for appointment. The preference may be as much as five (5) points for nondisabled persons, and as much as ten (10) points for persons currently receiving compensation from the United States Veterans' Administration for war-service-incurred disabilities certified as compensable. The rank of such persons on the eligible list shall then be determined on the basis of their augmented rating;

(5) For promotions which shall give appropriate consideration to the applicant's qualifications, record of performance, conduct and seniority. Vacancies shall be filled by promotion whenever practicable and in the best interest of the service;

(6) For the establishment of eligible lists for appointment, upon which lists shall be placed the names of successful candidates in the order of their relative excellence in the respective examinations. Eligibility lists shall expire automatically at the end of two (2) years, unless the life of a list is extended by action of the personnel board for a period not to exceed one (1) additional year;

(7) For the rejection of candidates or eligibles who fail to comply with reasonable requirements of the commissioner in regard to such factors as age, physical condition, training and experience, or who have been guilty of infamous or disgraceful conduct; who are addicted to alcohol to excess or to narcotics, or who have attempted any deception or fraud in connection with an examination;

(8) For the appointment of a person whose score is included in the three (3) highest scores earned on the examination;

(9) For a period of probation not to exceed one (1) year before appointment or promotion may be made complete, and during which period a probationer may be discharged or reduced in class or rank, or replaced on the eligible list. The appointing authority shall, within thirty (30) days prior to the expiration on an employee's probationary period, notify the commissioner in writing whether the probationary employee is recommended for permanent status. Only if the appointing authority certifies to the satisfactory nature of the probationary employee's services, shall permanent status be conferred;

(10) For emergency employment for not more than thirty (30) days with or without examination, with the consent of the commissioner;

(11) For provisional employment without competitive examination when there is no appropriate eligible list available. No such provisional employment shall continue longer than six (6) months, nor shall successive provisional appointment be allowed, except during the first year after July 1, 1960 in order to avoid stoppage of orderly conduct of the business of the commonwealth;

(12) For transfer from a position in one (1) department to a similar position in another department involving similar qualifications, duties, responsibilities, and salary ranges;

(13) For reinstatement within not more than five (5) years, only with the approval of the commissioner, of persons who resign in good standing or who are laid off from their positions without fault or delinquency on their part;

(14) For developing, in cooperation with the appointing authorities, uniform standards and methods of appraising work performance of all employees and for the use of such methods of appraisal in personnel actions;

(15) For lay-offs by reasons of lack of funds or work, or abolishment of a position, or material change in duties or organization, and for reinstatement of employees so laid off, giving consideration in both lay-offs and re-employment to qualifications, performance records, conduct and seniority in service;

(16) For imposition as disciplinary measures of a fine of not more than ten (10) days' pay or for suspension from the service without pay for not longer than thirty (30) days;

(17) For discharge or reduction in rank or grade only for cause, after the person to be discharged or reduced has been presented with the reasons for such discharge or reduction stated in writing, and has been allowed a reasonable time to reply thereto in writing, or, upon request, to appear personally with counsel and reply to the head of the department or his deputy. The statement of reasons and the reply shall be filed as a public record with the commissioner;

(18) For establishment of a plan for resolving employee grievances and complaints;

(19) For annual, sick and special leaves of absence, with or without pay, or reduced pay, after approval by the governor as provided in KRS 18.170 (2);

(20) For the development and operation of programs to improve the work effectiveness of employees in the state service, including training, whether in-service or compensated educational leave, safety, health, welfare, counseling, recreation, and employee relations;

(21) For promotion of career employees to positions in the unclassified service without loss of status to the individual employees so promoted;

(22) For such other rules and administrative regulations, not inconsistent with KRS 18.110 to 18.360 [18.340], as may be proper and necessary for its enforcement.

Section 13. KRS 18.220 is amended to read as follows:

The commissioner of personnel shall prepare and submit to the governor proposed rules for the unclassified service persons in positions enumerated in paragraphs (f), (g), (h), (i), (j), and (o) of subsection (1) of

KRS 18.140. Such rules shall be approved by the governor and promulgated according to KRS chapters 12 and 13. The rules shall provide:

(1) For the preparation, maintenance and revision of a position classification plan for all positions in the unclassified service, based upon similarity of duties performed and responsibilities assumed, so that the same qualifications may reasonably be required for and the same schedule of pay may be equitably applied to all positions in the same class. After such classification plan has been approved by the governor, the commissioner shall allocate the positions of every employee in the unclassified service to one (1) of the classes of the plan. Any employee affected by the allocation of a position to a class shall, after filing with the commissioner of personnel a written request for reconsideration thereof in such manner and form as the commissioner may prescribe, be given a reasonable opportunity to be heard thereon by the commissioner;

(2) For a pay plan for all employees in the unclassified service, after consultation with appointing authorities and the commissioner of finance, and taking into account such factors as (a) the relative levels of duties and responsibilities of various classes of positions; (b) rates paid for comparable positions elsewhere; and (c) the state's financial resources. Such pay plan shall become effective only after it has been approved by the governor after submission to him by the commissioner of personnel through the commissioner of finance. Amendments to the pay plan may be made in the same manner. Each employee shall be paid at one (1) of the rates set forth in the pay plan for the position in which he is employed;

(3) For transfer from a position in one (1) department to a similar position in another department involving similar qualifications, duties, responsibilities, and salary ranges;

(4) For annual, sick and special leaves of absence, with or without pay, or reduced pay, after approval by the governor as provided in KRS 18.170(2);

(5) For the development and operation of programs to improve the work effectiveness and morale of employees in the unclassified service, including training, safety, health, welfare, counseling, recreation, and employee relations;

(6) For establishing the physical requirements and obtaining proof of meeting such requirements of persons applying for unskilled laborer positions outside the classified service;

(7) For such other rules and administrative regulations, not inconsistent with KRS 18.110 to 18.360 [18.340], as may be proper and necessary for its enforcement.

Section 14. KRS 18.230 is amended to read as follows:

All officers and employees of the commonwealth and of all its municipalities and political subdivisions shall allow the department the reasonable use of public buildings under their control, and furnish heat, light and furniture for any examination, hearing, or investigation authorized by KRS 18.110 to 18.360 [18.340]. The department shall pay to a municipality or political subdivision the reasonable cost of any such facilities furnished by it.

Section 15. KRS 18.240 is amended to read as follows:

(1) All officers and employees of the commonwealth shall comply with, and aid in all proper ways in carrying out, the provisions of KRS 18.110 to 18.360 [18.340] and the rules, regulations, and orders thereunder. All officers and employees shall furnish any records or information pertaining to the administration of KRS 18.110 to 18.360 [18.340] which the commissioner may request. The commissioner or the board may require the attorney general to institute and maintain such legal action as the commissioner or the board may consider necessary or appropriate to secure compliance with KRS 18.110 to 18.360 [18.340] and the rules and orders thereunder.

(2) The commissioner of finance may review and approve all proposed position establishments and abolishments. Reclassifications and reallocations may also be reviewed and approved by the commissioner of finance on the basis of the availability of funds.

Section 16. KRS 18.250 is amended to read as follows:

As of July 1, 1960, all hiring for the classified service shall be on the basis of competitive examinations and certification by the personnel department in accordance with the provisions of KRS 18.110 to 18.360 [18.340].

Section 17. KRS 18.260 is amended to read as follows:

(1) No disbursing or auditing officer of the commonwealth shall make or approve or take any part in making or approving any payment for personal service to any person holding a position in the classified or unclassified service unless the payroll voucher or account of such pay bears the certification of the commissioner, or of his authorized agent, that the persons named therein have been appointed and employed in accordance with the provisions of KRS 18.110 to 18.360 [18.340] and the rules, regulations, and orders thereunder. The commissioner may for proper cause withhold certification from an entire payroll or from any specific item or items thereon. The commissioner may, however, provide that certification of payrolls may be made once every six (6) months, and such certification shall remain in effect except in the case of any officer or employee whose status has changed after the last certification of his payroll. In the latter case no voucher for payment of salary to such employee shall be issued or payment of salary made without the further certification of the commissioner.

(2) Any citizen, including public officers, may maintain a suit to restrain a disbursing officer from

making any payment in contravention of any provision of KRS 18.110 to 18.360 [18.340], rule, regulation or order thereunder. Any sum paid contrary to any provision of KRS 18.110 to 18.360 [18.340] or of any rule, regulation, or order thereunder may be recovered in an action maintained by any citizen, from any officer who made, approved, or authorized such payment or who signed or countersigned a voucher, payroll, check or warrant for such payment, or from the sureties on the official bond of any such officer. All moneys recovered in any such action shall be paid into the treasury.

(3) Any person appointed or employed in contravention of any provision of KRS 18.110 to 18.360 [18.340] or of any rule, regulation, or order thereunder, who performs service for which he is not paid, may maintain an action against the officer or officers, employe or employes, who purported so to appoint or employ him, to recover the agreed pay for such services, or the reasonable value thereof if no pay was agreed upon. No such officer or employe shall be reimbursed by the commonwealth at any time for any sum paid to such person on account of such services.

(4) If the commissioner wrongfully withholds certification of the payroll voucher or account of any employe, such employe may maintain a proceeding in the courts to compel the commissioner to certify such payroll voucher or account.

Section 18. KRS 18.280 is amended to read as follows:

The personnel board, each member of the personnel board, and the commissioner shall have the power to administer oaths, subpoena witnesses, and compel the production of books and papers pertinent to any investigation or hearing authorized by KRS 18.110 to 18.360 [18.340]. Any person who shall fail to appear in response to a subpoena or to answer any question or produce any books or papers pertinent to any such investigation or hearing or who shall knowingly give false testimony therein shall be guilty of a misdemeanor.

Section 19. KRS 18.300 is amended to read as follows:

(1) Subject to the approval of the personnel board the commissioner may enter into agreements with any municipality or other political subdivision of the commonwealth to furnish services and facilities of the department to such municipality or political subdivision in the administration of its personnel on merit principles. Any such agreement shall provide for the reimbursement to the department, under contract, of the reasonable cost of the services and facilities furnished, as determined by the commissioner. All municipalities and political subdivisions of the commonwealth are hereby authorized to enter into such agreements.

(2) The commissioner may cooperate with the governmental agencies of other jurisdictions charged with personnel administration in conducting joint tests and establishing joint lists from which eligibles shall be certified for appointment in accordance with the provisions of KRS 18.110 to 18.360 [18.340].

(3) The commissioner may, upon the request of the commissioner of health and upon the approval of the personnel board, furnish merit system services to 'local' departments of health.

Section 20. KRS 18.320 is amended to read as follows:

(1) No person shall make any false statement, certificate, mark, rating, or report with regard to any test, certification, or appointment made under any provision of KRS 18.110 to 18.360 [18.340] or in any manner commit or attempt to commit any fraud preventing the impartial execution of KRS 18.110 to 18.360 [18.340] and the rules, regulations or orders thereunder.

(2) No person shall, directly or indirectly, give, render, pay, offer, solicit, or accept any money, service, or other valuable consideration for or on account of any appointment, proposed appointment, promotion, or proposed promotion to, or any advantage in, a position in the classified service.

(3) No employe of the department, examiner, or other person shall defeat, deceive, or obstruct any person in his right to examination, eligibility, certification, or appointment under KRS 18.110 to 18.360 [18.340], or furnish to any person any special or secret information for the purpose of affecting the rights or prospects of any person with respect to employment in the classified service.

Section 21. KRS 18.330 is amended to read as follows:

(1) Appropriations shall be made from the general expenditure fund to the department of personnel to meet the estimated pro rata share of the cost of administering the provisions of this chapter for departments, commissions, boards or agencies which receive their sole support from the general expenditure fund.

(2) The commissioner shall maintain accurate records reflecting the cost of administering the provisions of this chapter. At the close of each quarter year period he shall summarize the cost and shall bill each department, commission, board or agency which receives support from sources other than the general expenditure fund, except the department of fish and wildlife resources, for a pro rata share of the administrative cost based on the relationship between the quarterly average number of employes in the service of such department, commission, board or agency and the quarterly average number of employes in the service of all the departments, commissions, boards and agencies for the appropriate calendar quarter.

(3) All departments, commissions, boards or agencies which receive support from other than the general expenditure fund, except the department of fish and wildlife resources, shall include in their budgets sufficient amounts to meet their pro rata shares of the cost of administering KRS 18.110 to 18.360 [18.340] and shall remit such shares quarterly to the department of personnel in the manner provided by law.

(4) The department is authorized and directed to accept on behalf of the state any grant or

contribution, federal or otherwise, made to assist in meeting the cost of carrying out the purposes of KRS 18.110 to 18.360 [18.340].

Section 22. KRS 18.340 is amended to read as follows:

The personnel board and the commissioner shall see that rules, regulations and practices meeting federal merit system standards shall, where such standards apply as a prerequisite for federal grants-in-aid, be in effect continuously, notwithstanding any other provision of KRS 18.110 to 18.360 [18.340].

Section 23. KRS 25.172 is amended to read as follows:

Upon the sworn application of any fiduciary for appointment, as required by KRS 395.015, that the fiduciary is the sole beneficiary of any estate, the court may dispense with the requirements of KRS 25.175 through KRS 25.215 and may dispense with the requirements of a surety for *the* [he] fiduciary and shall accept from the fiduciary an informal settlement. The informal settlement shall be made, under oath, by the fiduciary and shall state that the estate was solvent; that all legal claims and debts have been paid, or if not paid, the manner in which said claims and debts have been provided for; that all inheritance, estate or similar death taxes have been paid and a duplicate or photo copy of such tax releases shall be attached, if available; that all court costs have been paid; the name of the attorney(s), if any, representing the fiduciary, and the amount of the attorney's fee, and that the beneficiary has received his share. An informal settlement may be filed at any time after the period for filing claims against decedent's estate has elapsed, subject to the requirements of time for filing settlements as set out in KRS 25.175. Upon the filing of the informal settlement, the court may enter an order discharging the fiduciary, and his surety, if any. When a settlement is effected in the informal manner, no notice to any person shall be required by KRS 25.195, nor shall the court be compelled to inquire into detailed items of income or disbursements.

Section 24. KRS 29.390 is amended to read as follows:

(1) Grand jurors and petit jurors in circuit court shall each be paid five dollars per day for jury service. Persons whose names are on the jury list for jury service in circuit court, or are summoned under KRS 29.280 to supply a deficiency, who appear in person in court in response to summons who do not claim exemption or ask to be relieved from jury service, shall receive five dollars per day for each day they are required to be and are in attendance, even though they are not sworn or accepted for jury service.

(2) Except as the amounts which may be expended therefor may be limited by regulations issued by the Department of Finance, the cost of meals, and where they are kept together over night, the cost of lodging, for all petit jurors ordered to remain together in the custody of the sheriff during the trial of any case, shall be paid by the circuit clerk out of the funds advanced by the Department of Finance as provided in KRS 28.180. The clerk shall obtain a receipt for the payment of such costs which shall be included in his settlement with the Department of Finance.

(3) In courts inferior to the circuit court, [except in counties containing a city of the second class,] each juror shall be paid \$1.50 for each case in which he serves, but if the same juror serves on more than two juries in one day he shall not be allowed a fee for the cases in excess of two.

[(4) In courts inferior to the circuit court, in counties containing a city of the second class, each juror shall be paid \$1.50 for each case in which he serves, but if the same juror serves on more than two juries in one day he shall not be allowed a fee for the cases in excess of two.]

Section 25. KRS 61.300 is amended to read as follows:

(1) No person shall serve as a deputy sheriff, deputy constable, patrol or other nonelective peace officer or deputy peace officer, *unless*:

(a) [Unless] *He* is a citizen of the United States and is twenty-one (21) years of age or over;

(b) [Unless] *He* has resided in the county wherein he is appointed to serve for a period of at least two (2) years;

(c) *He* [Who] has *never* [ever] been convicted of or is under indictment for a crime involving moral turpitude;

(d) *He* [Who] has *not* within a period of two (2) years hired himself out, performed any service, or received any compensation from any private source for acting, as a privately paid detective, policeman, guard, peace officer or otherwise as an active participant in any labor dispute, or conducted the business of a private detective agency or of any agency supplying private detectives, private policemen or private guards, or advertised or solicited any such business in connection with any labor dispute;

(e) [Until] *He* has file his photograph with the county clerk of the county in which he is to serve, together with his affidavit stating his full name, age and residence address and that he is not prohibited from serving by this section.

(2) The photograph so filed with the county clerk shall consti ute a public record.

(3) Any person who exercises any of the functions of nonelective peace officer or deputy peace officer in violation of the provisions of this section shall be fined not less than one hundred (100) nor more than five hundred dollars (\$500), or imprisoned in the county jail for not more than six (6) months, or both.

Section 26. KRS 61.720 is amended to read s follows:

As used in KRS 61.710 to 61.780:

[(1)] 'Financial interest' means an economic interest in the form of stocks, bonds, realty, equity or

credit or interests in a corporation, proprietorship or partnership or otherwise.

Section 27. KRS 69.265 is amended to read as follows:

Each county attorney of the state shall be paid out of the state treasury, each month, beginning *July 1, 1972* [August 1, 1962], the sum of two hundred fifty dollars (\$250), which sum is hereby declared to be the equivalent of the minimum sum that each county attorney will expend each month in the performance of his official duties directed to be performed for the Commonwealth, for postage, telephone service, travel, criminal investigation, supplies, stationery and books for which there are no provisions for payment. The Commissioner of Finance shall, on the first of each month beginning *July 1, 1972* [August 1, 1962], draw his warrant on the Treasurer in favor of each county attorney for the sum stated in this section, and the same shall be paid from the revolving fund created by KRS 142.040. The sums so received shall be expended by each county at the discretion, the manner in which the same shall be applied in payment or reimbursement of such expenses being determined by such officer.

Section 28. KRS 125.190 is amended to read as follows:

The canvass and returns provided for in KRS 125.150 shall constitute the official returns of the precinct, unless within ninety-six (96) hours after the close of the polls a candidate shall in writing request the county board of elections [election commission] to check and recanvass the voting machines of any precinct or any number of precincts. When such a request has been made the election commission shall immediately assemble and recheck and recanvass each machine and make a proper return thereof to the county court clerk, in which event the canvass and return shall become the official returns for the election. In making the recanvass the board shall make a record of the number of the seal upon the voting machine and without unlocking the machine against voting, recanvass the vote cast thereon. If, upon a recanvass, it is found that the original canvass of the returns has been correctly made from the machine, and that there still remains a discrepancy unaccounted for, the board with the assistance of the county clerk, shall unlock the voting and counting mechanism of the machine, and shall proceed thoroughly to examine and test the machine to determine and reveal the true cause, if any, of the discrepancy in returns of the machine. Each registering counter shall be reset at zero before it is tested, after which it shall be operated at least one hundred (100) times. After the completion of the examination and test, the county clerk shall then and there prepare a statement, in writing, giving in detail the result of the examination and test and statement which shall be witnessed by the persons present, and shall be filed with the board. If, upon recanvass, it appears that the original canvass of the returns by the election officers was incorrect, the returns and all papers being prepared by the board shall be corrected accordingly, except that there shall be no change in the vote of any candidate from that originally certified unless such candidate was actually notified. At the recanvass, each political party represented on the board may appoint a representative there to be its governing body, and also each candidate to be voted for may be present either in person or by a representative or both.

Section 29. KRS 132.670 is amended to read as follows:

Whenever a city or county by order of its legislative body petitions the department for a reappraisal of the properties therein and the department, after investigation, determines that a reappraisal is necessary, the department shall, according to the comparative need therefor, provide personnel and other assistance to aid the city assessor or *property valuation administrator* [county tax commissioner] in accomplishing this result. The Department of Revenue shall prescribe methods and specifications for the reappraisal of property. Personnel authorized to assist in making a city or county reappraisal under this section may be given the same authority as a deputy *property valuation administrator* [tax commissioner] or deputy city assessor. Cities, counties, and other taxing districts may make appropriations from their general funds to share expenses incurred for such purposes by the department or for the purpose of employing other assistance in conducting such reappraisal projects. The Department of Revenue shall prepare detailed maps identifying every parcel of real property within each county of the state by July 1, 1982. Each county shall furnish to the department adequate facilities in the county courthouse in which to work. The Department of Revenue shall prescribe methods and specifications for the mapping of property. Personnel authorized to assist in making property identification maps under this section may be given the same authority as a deputy *property valuation administrator* [tax commissioner]. Cities, counties, and other taxing districts may make appropriations from their general funds to share expenses incurred for such purposes by the department or for the purpose of employing other assistance in conducting such mapping projects.

Section 30. KRS 147.610 is amended to read as follows:

In any two (2) or more adjacent counties, one (1) of which has a city having a population of more than 50,000 and not more than 200,000 inhabitants as declared by the last federal census, the various cities and the counties may consolidate their planning operations by establishing an area planning commission which may be created under the provisions of KRS 147.610 to 147.710 and 147.990 [chapter 100], when in the judgment of the legislative bodies of the cities and counties a consolidation provides for a more efficient planning operation.

Section 31. KRS 149.550 is amended to read as follows:

(1) If the county governing body requires the owners to participate, it shall determine the amount of the assessment for each acre, and shall order the assessment to be paid into the county treasury by the owners of all timberland located in the county.

(2) It shall be the duty of each owner of timberland situated in the county to list or have listed such property with the property valuation administrator within the time provided for assessing property for state and county ad valorem taxes.

(3) Timberland shall be listed by the owner of the first freehold estate therein, and it shall be listed without reference to conflicting title. The listing shall be made at the same time and in the same manner in which declarations of real property owned are made with the property valuation administrator for assessment purposes. If the owner fails to list the timberland, the *property valuation administrator* [county tax commissioner] shall list it. The *property valuation administrator* [county tax commissioner] shall have the power to swear witnesses in order to ascertain the person in whose name to make the list.

(4) All persons in whose name the timberland acreage is properly listed shall remain bound for the assessment, notwithstanding they may have sold or parted with it.

Section 32. KRS 138.591 is amended to read as follows:

[(1)] Notwithstanding any other provision of this chapter to the contrary, any person who shall remit to the department, by the twenty-fifth day of each month, an amount equal to not less than ninety-five percent of his tax liability as finally determined for the previous month shall not be required to file the monthly reports required by this chapter until the last day of each month, and shall be permitted to claim as a credit against the tax liability shown due on such report the amount previously paid for such month.

Section 33. KRS 156.630 is amended to read as follows:

(1) The teacher *education* scholarship board shall award scholarships not to exceed two hundred thousand dollars (\$200,000) for the 1962-64 biennium to applicants whom the board deems qualified. Scholarships shall be awarded solely for summer work at any accredited college or institution of the applicant's choice within the commonwealth. Each scholarship shall consist of two hundred dollars (\$200), payable at the end of the summer term. The scholarship shall be paid only if the applicant successfully completes at least six (6) semester hours of academic courses in the subject for which the scholarship was granted. Each person to whom a scholarship is granted shall take at least six (6) semester hours of courses approved by the college in the subject for which the scholarship was granted and may take three (3) additional semester hours in that subject or another subject which he is teaching and in which he does not have a minor.

(2) In awarding scholarships for the second year, the board shall give priority to persons who were not awarded a scholarship the first year, provided, however, that an applicant may be awarded a scholarship the second year if he successfully completed six (6) semester hours the first year and is otherwise qualified under the terms of KRS 156.610 to 156.650.

Section 34. KRS 158.990 is amended to read as follows:

[(1)] Any person who violates any of the provisions of subsection (2) or (3) of KRS 158.020 shall be fined one thousand dollars (\$1,000), and any person who continues to violate such provisions after being convicted shall be fined one hundred dollars (\$100) for each day the violation continues.

(2) Any person who violates any of the provisions of subsection (4) or (5) of KRS 158.020 shall be fined fifty dollars (\$50.00) for each day the violation occurs.]

(1) [(3)] Any person who violates any of the provisions of KRS 158.180 shall be fined not less than fifty dollars (\$50.00) nor more than five hundred dollars (\$500), or imprisoned in the county jail for not less than thirty (30) days nor more than six months, or both.

(2) [(4)] Failure of a teacher to conform to KRS 158.170 is cause for revocation of his certificate.

(3) [(5)] Any member of a school board who votes to permit entrance to a school of any child not eligible therefor under the provisions of KRS 158.030 shall be fined not less than five dollars (\$5.00) nor more than fifty dollars (\$50.00).

Section 35. KRS 160.593 is amended to read as follows:

Any board of education of a school district may, after compliance with the public hearing requirement contained in KRS 160.603, request the fiscal court to levy [in its district] one of the school taxes authorized by KRS 160.605 to 160.611, 160.613 to 160.617, and 160.621 to 160.633. The fiscal court shall levy [in the district], within fifteen (15) days of such request, the school tax at the rate requested. All taxes referred to in this section shall be levied on a county-wide basis unless the school board of a school district within the county requests that the tax levied shall not be assessed against the residents of its school district, in which case the residents of that school district shall be exempted from the tax. In those counties where one of the taxes referred to by this section is in effect on June 16, 1972, the taxes shall continue to be levied on a county-wide basis. Revenue produced by such taxes shall be distributed on an average Daily Attendance to those districts levying such taxes.

Section 36. KRS 189.940 is amended to read as follows:

(1) The [prima facie] speed limitations set forth in the Kentucky Revised Statutes do not apply to emergency vehicles when responding to emergency calls or to police vehicles when in pursuit of an actual or suspected violator of the law and when the drivers thereof are operating the vehicle's warning lights and are giving audible signals by siren, bell, or exhaust whistle.

(2) The driver of an emergency vehicle, when responding to an emergency call or of a police vehicle in pursuit of an actual or suspected violator of the law and giving the warning required by subsection (1) of this

section, upon approaching any red light or stop signal or any stop sign shall slow down as necessary for safety to traffic, but may proceed past such red or stop light or stop sign with due regard for the safety of persons using the street or highway.

(3) The driver of an emergency vehicle, when responding to an emergency call or of a police vehicle in pursuit of an actual or suspected violator of the law and giving warning required by subsection (1) of this section, may drive on the left side of any highway or on the opposite direction of a one-way street provided the normal lanes of traffic are blocked and he does so with due regard for the safety of all persons using the street or highway.

(4) The driver of an emergency or public safety vehicle may stop or park his vehicle upon any street or highway without regard to the provisions of KRS 189.390 and 189.450, provided that, during the time the vehicle is parked at the scene of an emergency, that at least one (1) warning light is in operation at all times.

(5) No driver or operator of any emergency or public safety or other vehicle shall use the warning lights or siren, bell, or exhaust whistle of his vehicle for any purposes or under any circumstances other than those permitted by KRS 189.910 to 189.950.

(6) KRS 189.910 to 189.950 does not relieve the driver of any emergency or public safety vehicle from the duty to drive with due regard for the safety of all persons and property upon the highway.

Section 37 KRS 196.070 is amended to read as follows:

The director of the division of institutions shall:

(1) Supervise and administer the Kentucky state reformatory at LaGrange located in *Oldham* [Shelby] County and the women's prison, the Kentucky state penitentiary at Eddyville, or any divisions of those institutions, and the prison industry program within those institutions.

(2) Supervise the employment of prisoners who have not been paroled or conditionally released, either within or without the walls or enclosures of these institutions.

(3) Have the authority to transfer, with the approval of the commissioner and the commissioner of finance, appropriated funds from the budget of one (1) penal institution to another.

(4) Determine minimum, maximum and conditional release dates of prisoners in accordance with KRS 197.045.

(5) Authorize the transfer of male prisoners between institutions.

(6) Approve the forfeiture or restoration of good time earned by prisoners during their term of confinement.

Section 38 KRS 205.510 is amended to read as follows:

As used in this chapter as it pertains to medical assistance unless the context clearly requires a different meaning:

(1) 'Council' means the Advisory Council for Medical Assistance;

(2) 'Dentist' means a person authorized to practice dentistry under laws of the Commonwealth;

(3) 'Medical care' as used in this chapter means essential medical, surgical, dental, optometric, and nursing services, in the home, office, clinic, or other suitable places, which are provided or prescribed by physicians, optometrists or dentists licensed to render such service, including drugs and medical supplies, appliances, laboratory, diagnostic and therapeutic services, nursing home and convalescent care, hospital care as defined in KRS 205.560 (1) (a), and such other essential medical services and supplies as may be prescribed by such persons. However, this section does not authorize optometrists to perform any services other than those authorized by KRS chapter 320;

(4) 'Nurses' means persons authorized to practice professional nursing under the laws of the Commonwealth;

(5) 'Nursing Home' means a facility which provides routine medical care in which physicians regularly visit patients, which provide nursing services and procedures employed in caring for the sick which require training, judgment, technical knowledge, and skills beyond that which the untrained person possesses, and which maintains complete records on patient care, and which is licensed pursuant to the provisions of KRS 216.405 [216.400];

(6) 'Optometrist' means a person authorized to practice optometry under the laws of the Commonwealth;

(7) 'Pharmacist' means a person authorized to practice pharmacy under the laws of the Commonwealth;

(8) 'Physician' means a person authorized to practice medicine or osteopathy under the laws of the Commonwealth;

(9) 'Public assistance recipient' means a person who has been certified by the Bureau of Public Assistance of the Department of Economic Security as being eligible for, and a recipient of, public assistance under the provisions of this chapter;

(10) 'Other persons eligible for medical assistance' may include the categorically needy excluded from money payment status by state requirements and classifications of medically needy individuals as permitted by federal laws and regulations and as prescribed by regulation of the commissioner of the Department of Economic Security;

(11) 'Vendor payment' means a payment for medical care which is paid by the Department of Economic Security directly to the authorized person or institution which rendered medical care to an eligible recipient.

Section 39. KRS 211.190 is amended to read as follows:

The department shall provide public health services including the following:

(1) Administrative, consultative, technical, professional and other services needed to assist local health departments in the effective maintenance and operation of their departments;

(2) Administrative, investigative and clerical services required by the board and may upon request provide such services to any other agency of this commonwealth authorized to control the practice of any other healing art;

(3) Administration of grants, gifts or contributions from the federal government, or from other sources, for the purpose of carrying out the provisions of Public Law No. 725 (79th Congress, 2nd Session, chapter 958) or any other acts for the same or similar purposes;

(4) Central registrations of births, deaths and other vital records and the furnishing of copies thereof to the general public in the manner prescribed by law;

(5) Statistical services, including the *compilation* [complication], analysis and maintenance of statistics on matters related to public health, and may provide such services to organizations and persons interested in public health;

(6) Education of the public concerning all matters relating to health, including the publication and dissemination of health information, and the stimulation of citizen support for the promotion and maintenance of high standards of public health throughout the commonwealth;

(7) Survey and study of the needs of medical and hospital facilities in the interest of the health of the general public;

(8) Establishment, maintenance and operation of public health laboratories and such branches thereof as may be needed;

(9) Establishment, maintenance and operation of training facilities and schools for employes of the department and of local health departments;

(10) Tabulating, duplicating and such other ancillary services as are necessary to the operation of the department, including the keeping of adequate financial, personnel and other records.

Section 40. KRS 218A.130 is amended to read as follows:

Unless otherwise rescheduled by regulation of the State Board of Health the controlled substances listed in this section are included in Schedule V:

[(1)] Any compound, mixture, or preparation containing limited quantities of any of the following narcotic drugs, which also contains one or more nonnarcotic active medicinal ingredients in sufficient proportion to confer upon the compound, mixture, or preparation, valuable medicinal qualities other than those possessed by the narcotic drug alone: Not more than 200 milligrams of codeine, or any of its salts, per 100 milliliters or per 100 grams.

Section 41. KRS 220.360 is amended to read as follows:

(1) The board of directors, as soon as duly appointed and qualified, may levy one (1), two (2), or three (3) annual taxes, which taxes need not be in successive years, or not more than fifteen cents (15) upon each one hundred dollars (\$100) of assessed valuation of property within the district, to be used for the purpose of paying the expenses of organization, surveys and plans, and for other incidental expenses that may be necessary up to the time money is received from the sale of bonds. This tax shall be certified to the auditors of the various counties and by them to the respective treasurers of their counties. The tax shall be based upon the last preceding assessment for state and county purposes, its collection shall conform to the collection of taxes for counties, and the same provisions concerning the nonpayment of taxes shall apply. The tax shall be added by the county clerk to the next state and county tax bill following the levy of the tax by the board of directors, and shall be collected concurrently with the state and county taxes. Neither the *property valuation administrator* [county tax commissioner] nor the county court clerk shall be entitled to any additional compensation for the services rendered in connection with the listing of the property for taxation nor shall the sheriff receive any additional compensation for the collection of the tax.

Section 42. KRS 222.011 is amended to read as follows:

In this chapter the following words shall, unless the context requires otherwise, have the following meanings:

(1) 'Administrator' means the person in charge of the operation of a facility, or his designee.

(2) 'Alcoholic' means a person suffering from alcoholism.

(3) 'Alcoholism' means a medically diagnosable disease characterized by chronic, habitual or periodic consumption of alcoholic beverages resulting in the (a) substantial interference with an individual's social or economic functions in the community, or (b) the loss of powers of self-control with respect to the use of such beverages.

(4) 'A person under the influence of drugs' means a person whose powers of self-control have been substantially impaired because of the use of a drug described in KRS chapters 217 and 218A or the federal

Controlled Substances Act of 1970, and regulations pursuant thereto.

(5) 'Commissioner' means the commissioner of mental health.

(6) 'Department' means the department of mental health.

(7) 'Director' means the director of the division of alcohol and drug abuse.

(8) 'Division' means the division of alcohol and drug abuse.

(9) 'Drug addict' means any person whose use of an addictive substance has produced a condition which requires ingestion or injection of the addictive substance, or both, as a means of preventing withdrawal symptoms and of maintaining the individual's state of function.

(10) 'Drug dependent person' or 'drug abuser' means any person who compulsively and habitually uses drugs to the extent that they injure his health and interfere with his social and economic functioning.

(11) 'Facility' means any public or private place, or portion thereof, providing services especially designed for the detoxification, treatment or rehabilitation of intoxicated persons or alcoholics.

(12) 'Incapacitated' means the condition of an intoxicated person who, by reason of the consumption of intoxicating liquor is:

(a) Unconscious,

(b) In need of medical attention,

(c) Likely to suffer or cause physical harm or damage property, or

(d) Disorderly.

(13) 'Independent physician' means a physician licensed to practice in Kentucky, other than one holding an office or appointment in any department, board or agency of the commonwealth, or in any public facility.

(14) 'Juvenile' means any person who is under the age of eighteen.

(15) 'Patient' means any person admitted to a facility.

(16) 'Treatment' means services and programs for the care and rehabilitation of intoxicated persons and alcoholics.

Section 43. KRS 222.031 is amended to read as follows:

(1) The Department of Mental Health is further designated to carry out the planning activities of the Commonwealth in the field of alcoholism and other drug abuse and addiction and to provide assistance to the activities of other state agencies in combating the problems of alcoholism and other drug abuse and addiction, as they may affect those state agency programs or persons under their respective charge and care.

(2) To initiate and implement the purposes set forth in this chapter, there is established within the Department of Mental Health a Division of Alcohol and Drug Abuse. The director shall be appointed by the commissioner with the advice and consent of the Commission on Alcohol and Drug Problems and with the approval of the Governor. The director of the division may be any person qualified by training, research or experience in the treatment of behavioral disorders of medico-social problems or in the design, organization or administration of treatment services for persons suffering from behavioral disorders or medico-social problems.

(3) To implement the coordination of state agencies' alcoholism programs, there is hereby established an Interagency Council on Alcoholism[s] which shall be composed of but not restricted to, a representative from each of the following departments: Child Welfare, Corrections, Economic Security, Education, Health, Labor, Mental Health, Public Safety, Tuberculosis Hospital Commission, and Personnel. The commissioner of each department named to the council shall designate a representative from his department to the Interagency Council on Alcoholisms. The designated representative shall be the staff member charged with alcoholism program responsibility within that department.

(4) A coordinator shall be appointed in the Division of Alcohol and Drug Abuse, Department of Mental Health to implement the Interagency Council on Alcoholisms to conduct ongoing activities of the council to develop coordination and planning between the Division of Alcohol and Drug Abuse and the agencies represented on the Interagency Council of Alcoholisms.

(5) To implement the coordination of state agencies' drug programs there is hereby established an Interagency Council on Drug Abuse which shall be composed of, but not restricted to, a representative from each of the following departments: Child Welfare, Corrections, Economic Security, Education, Health, Labor, Mental Health, Public Safety and Personnel. The commissioner of each department named to the council shall designate a representative from his department to the Interagency Council on Drug Abuse. The designated representative shall be the staff member charged with drug abuse program responsibility within that department.

(6) A coordinator shall be appointed in the Division of Alcohol and Drug Abuse, Department of Mental Health to implement the Interagency Council on Drug Abuse to conduct ongoing activities of the council to develop coordination and planning between the Division of Alcohol and Drug Abuse and the agencies represented on the Interagency Council of Drug Abuse.

(7) The provisions of this section and KRS 222.020 and 222.035 shall be in addition to any present statutory responsibility given to state departments.

Section 44. KRS 222.310 is amended to read as follows:

(1) As used in this section 'hospital' shall be defined as in KRS 216.405 (6) [216.400 (1)].

(2) No hospital shall refuse to admit and treat on the basis of medical need, alcohol abusers and alcoholics whose admission or treatment has been prescribed by a physician who is a member of the hospital's staff; nor shall any hospital discriminate against alcoholics solely because of their alcoholism.

Section 45. KRS 244.550 is amended to read as follows:

[Except as provided in KRS 243.190,] *No* [no] person shall fortify, adulterate, contaminate or in any manner change the character or purity of the malt beverages from that as originally marketed by the brewer or sell, deliver or transport malt beverages except in the original containers.

Section 46. KRS 262.765 is amended to read as follows:

(1) The board of directors of a watershed conservancy district shall prepare and furnish to the *property valuation commissioner* [county tax commissioner] by January 1 each year a list of the landowners in each county involved showing the real property subject to assessment, and the *property valuation administrator* [county tax commissioner] of the county or counties involved shall indicate, for the use of the clerk, such information on the tax rolls. The list furnished the *property valuation administrator* [county tax commissioner] by the board of directors shall: list the landowners in alphabetical order by taxing districts as shown on the previous year's tax roll, list the total acreage and the acreage in the watershed conservancy district owned by each landowner, and show that part of the previous year's assessment attributable to real property within the watershed conservancy district on those parcels which are not entirely within the district.

(2) When the property tax rolls are delivered to the county court clerk by the *property valuation administrator* [county tax commissioner], as required by law, the county clerk shall compute the tax due the district from each landowner in accordance with the rate fixed by the board of directors and the value of the real property indicated on the tax roll. The computation shall be made on the regular tax bills in such manner as may be directed by regulation of the department of revenue.

Section 47. KRS 278.990 is amended to read as follows:

(1) Any officer, agent or employee of a utility, as defined in KRS 278.010, and any other person who wilfully violates any of the provisions of KRS 278.010 to 278.450, or who procures, aids or abets any violation of those provisions by any such utility, shall be fined not more than one thousand dollars (\$1,000) or imprisoned for not more than six (6) months, or both. If any such utility that is a private corporation violates any of the provisions of KRS 278.010 to 278.450, or does any act therein prohibited, or fails to perform any duty imposed upon it under those sections for which no penalty has been provided by law, or fails to obey any lawful requirement or order of the public service commission, the utility shall for each offense forfeit and pay to the state treasurer, to be credited to the general fund, a sum not less than twenty-five dollars (\$25.00) nor more than one thousand dollars (\$1,000). Each act, omission or failure by an officer, agent or other person acting for or employed by a utility and acting within the scope of his employment shall be deemed to be the act, omission or failure of the utility.

(2) Actions to recover the principal amount due and penalties under KRS 278.010 to 278.450 and this subsection shall be brought in the name of the commonwealth in the Franklin Circuit Court. Whenever any utility is subject to a penalty under KRS 278.010 to 278.450 or this subsection, the public service commission shall certify the facts to its counsel, who shall bring an action for recovery of the principal amount due and the penalty. The commission may compromise and dismiss the action on terms approved by the court. The principal amount due shall be paid into the state treasury and credited to the account of the commission, and all penalties recovered in such actions shall be paid into the state treasury and credited to the general fund.

(3) Any utility that fails to pay an assessment as provided for by KRS 278.130 to 278.150 shall forfeit and pay to the state one thousand dollars (\$1,000), and twenty-five dollars (\$25.00) for each day it fails to pay the assessment, and shall not be released thereby from its liability for the assessment.

(4) Any utility that issues any securities or evidences of indebtedness, or assumes any obligation or liability in respect to the securities or evidences of indebtedness of any other person, or makes any sale or other disposition of securities or evidences of indebtedness, or the proceeds thereof, for purposes other than the purposes specified in the order of the public service commission made with respect thereto under KRS 278.300, shall be fined not more than ten thousand dollars (\$10,000).

(5) Any utility that violates any of the provisions of KRS 278.460 shall be fined not less than one hundred dollars (\$100) for each offense.

(6) Any company that wilfully fails to receive, transport and deliver oil or gas as required by KRS 278.490 shall, in addition to being liable in damages to the injured person, be fined not less than one hundred dollars (\$100) nor more than five hundred dollars (\$500), and each day of wilful failure shall constitute a separate offense.

(7) Any telephone company that refuses to make a connection with the exchange or lines of another company for a period of thirty (30) days after being ordered to do so by the public service commission under subsection (2) of KRS 278.530 shall be fined not less than one thousand dollars (\$1,000) nor more than five thousand dollars (\$5,000), to be recovered by indictment in the Franklin Circuit Court or in the circuit court of the county where the company requesting the connection resides or has its chief office in this state. If the company desiring the connection proceeds to make the connection, as permitted by subsection (2) of KRS 278.530, and the company so connected with refuses to receive and transmit the toll messages offered to it by the

company making the connection, or refuses to deliver messages from its own lines or exchanges to the lines or exchanges of the company making the connection, the company so refusing shall be fined one hundred dollars (\$100) for each day it refuses, to be recovered by indictment in the courts mentioned in the first sentence of this subsection; if it continues so to refuse for a period of six (6) months it shall forfeit its right to do business in this state, and any of its officers, agents or employees who does or attempts to do any business in this state for it after the expiration of the six (6) months' period shall be fined fifty dollars (\$50.00) for each day he does or attempts to do such business.

(8) Any company that violates any of the provisions of KRS 278.520 or 278.530 for which there is no other penalty provided shall be fined five hundred dollars (\$500) for each offense, and each day of such violation shall constitute a separate offense.

[(9) Any interurban railway company that violates any of the provisions of KRS 278.570 shall be fined not less than five dollars (\$5.00) nor more than fifty dollars (\$50.00) for each offense, and each day that the company operates a passenger car that is not equipped as provided in KRS 278.570 shall constitute a separate offense.]

[(10) Any interurban railway company that violates, or permits any of its agents or employees to violate, any of the provisions of KRS 278.580 shall, in addition to subjecting itself to liability for any damages caused thereby, be fined for each offense not less than ten dollars (\$10.00) nor more than fifty dollars (\$50.00). Prosecutions under this subsection shall not be commenced more than six (6) months after the commission of the offense charged.]

Section 48. KRS 287.235 is amended to read as follows:

Common trust funds shall not be considered as an entity for income or other tax purposes, nor shall investment in such fund make taxable any property which is otherwise exempt therefrom; and for purposes of taxation, the status of the common trust fund and of each participant therein shall be determined as though there were no common fund and as though each participant was the owner of its proportionate share of every asset held in the common fund. The bank or trust company maintaining said fund shall file a report of said fund with the *property valuation administration* [county tax commissioner] as of the ad valorem tax date and shall file annually such income tax information as may be required by the department of revenue.

Section 49. KRS 291.520 is amended to read as follows:

(1) KRS 287.215, 288.420, 288.620 and 360.010 do not apply to loans made under authority of KRS 291.460 [or 291.470] to 291.510, but KRS 287.215, 288.420, 288.620 and 360.010 remain in full force and effect for all other purposes and nothing in this section or in KRS 291.480 [291.470] to 291.510 shall be construed to impair the validity or effect of KRS 287.215, 288.420, 288.620 and 360.010 with respect to loans other than those made pursuant to KRS 291.460 or [or 291.470] to 291.510.

(2) Any contract of loan in the making or collection of which any act has been done which constitutes a wilful violation of any provision of KRS 291.460 [or 291.470] to 291.510 is void, and the corporation has no right to collect or receive any interest or charges whatsoever on such loan, but the unpaid principal of the loan shall be paid in full to the lending institution.

(3) Those industrial loan corporations operating under KRS 291.410 to 291.600 that issue certificates of investment shall establish as a reserve against such certificates of investment an amount which shall not be less than five per cent (5%) of the amount of such certificates of investment outstanding. In addition the commissioner shall have authority to require a blanket surety bond with an approved corporate surety which shall include fidelity coverage in an amount deemed adequate by the commissioner to protect holders of certificates of investment.

(4) No corporation organized under KRS 291.410 to 291.600 shall deposit any of its funds with any bank or trust company unless such bank or trust company has been designated as such depository by a vote of the majority of the directors of the executive committee exclusive of any director who is an officer, director or trustee of the depository so designated. A corporation operating under KRS 291.410 to 291.600 may invest in the bonds of any federal instrumentality or bonds issued by the Commonwealth of Kentucky or any governmental subdivision thereof.

(5) No corporation organized under KRS 291.410 to 291.600, nor any foreign industrial loan corporation nor any other person shall conduct its business in the same office in which there is conducted a petty loan business under KRS chapter 288, or solicit any other business, or associate or be in conjunction with any other business except upon a written authorization by the commissioner.

Section 50. KRS 292.520 is amended to read as follows:

The securities advisory committee shall:

- (1) Serve in an advisory capacity to the director in all matters pertaining to this chapter;
- (2) Acquaint themselves fully with the operations of the director's office as to the administration of securities, broker-dealers, agents, and investment advisers, and periodically recommend to the director such changes in the rules and regulations of the division in connection therewith as they deem advisable;
- (3) Appoint three of their members to act as an examining committee;
- (4) The securities advisory committee shall receive no compensation, but shall be reimbursed as provided by law for their transportation, lodging and other expenses; Provided, That members acting as an

examining committee when directed to do so by the director shall be paid in addition to expenses allowed fifty dollars per day for conducting examinations provided for herein.

Section 51. KRS 304.2-210 is amended to read as follows:

(1) For the purpose of determining financial condition, ability to fulfill and manner of fulfillment of its obligations, the nature of its operations and compliance with law, the commissioner shall examine the affairs, transactions, accounts, records and assets of each authorized insurer as often as reasonably necessary. He shall so examine each domestic insurer not less frequently than every four (4) years. Examination of a reciprocal insurer may include examination of its attorney in fact as to its transactions relating to the insurer. Examination of an alien insurer may be limited to its insurance transactions and affairs in the United States, except as the commissioner otherwise requires.

(2) The commissioner shall in like manner examine each insurer applying for an initial certificate of authority to transact insurance in this state.

(3) In lieu of making his own examination, the commissioner may, in his discretion, accept a full report of the last recent examination of a foreign, or alien, insurer, certified to by the insurance supervisory official of another state.

(4) As far as practical, the examination of a foreign or alien insurer shall be made in cooperation with the insurance supervisory officers of other states in which the insurer transacts business, and for the purpose thereof the commissioner [the commissioner] may participate in joint examinations of insurers or be represented in an examination by an examiner of another state.

Section 52. KRS 304.6-140 is amended to read as follows:

(1) This subsection applies only to policies and contracts issued prior to January 1, 1948, or such earlier date after June 13, 1944, as shall have been elected by an insurer as the date on and after which it would comply with the standard nonforfeiture law. The minimum standard for the valuation of all such policies and contracts shall be that provided by the laws in effect immediately prior to such date. Reserves for all such policies and contracts may be calculated, at the option of the insurer, according to any standards which produce greater aggregate reserves for all such policies and contracts than the minimum reserves required by this subsection.

(2) This subsection applies only to policies and contracts issued on and after January 1, 1948, or such earlier date after June 13, 1944, as shall have been elected by an insurer as the date on and after which it would comply with the standard nonforfeiture law.

The minimum standard for the valuation of all such policies and contracts shall be the commissioners reserve valuation method defined in KRS 304.6-150, 4 per cent interest, and the following tables:

(a) Standard ordinary mortality table. For all ordinary policies of life insurance issued on the standard basis, excluding any disability and accidental death benefits in such policies,--the commissioners 1941 standard ordinary mortality table; Provided, however, That the commissioners 1958 standard ordinary mortality table shall be the table for such minimum standard for such policies issued on and after January 1, 1966, or such earlier date after June 16, 1960, as shall have been elected by an insurer as the date on and after which it would use such table as the basis for minimum cash surrender values and nonforfeiture benefits under the standard nonforfeiture law; Provided that for any category of such policies issued on female risks all modified net premiums and present values referred to in KRS 304.6-130 to 304.6-180, inclusive, may be [may be] calculated according to an age not more than three (3) years younger than the actual age of the insured.

(b) Standard industrial mortality table. For all industrial life insurance policies issued on the standard basis, excluding any disability and accidental death benefits in such policies,--the 1941 standard industrial mortality table; Provided, however, That the commissioners 1961 standard industrial mortality table shall be the table for such minimum standard for such policies issued on and after January 1, 1968, or such earlier date after June 14, 1962, as shall have been elected by the insurer as the date on and after which it would use such table as the basis for minimum cash surrender values and nonforfeiture benefits under the standard nonforfeiture law.

(c) Standard annuity mortality table or annuity mortality table. For individual annuity and pure endowment contracts, excluding any disability and accidental death benefits in such policies--the 1937 standard annuity mortality table or, at the option of the insurer, the annuity mortality table for 1949, Ultimate, or any modification of either of these tables approved by the commissioner.

(d) Group annuity mortality table. For group annuity and pure endowment contracts, excluding any disability and accidental death benefits in such policies--the group annuity mortality table for 1951, any modification of such table approved by the commissioner, or, at the option of the insurer, any of the tables or modifications of tables specified for individual annuity and pure endowment contracts.

(e) Class (3) disability table. For total and permanent disability benefits in or supplementary to ordinary policies or contracts on active and disabled lives--for policies or contracts issued on or after January 1, 1966, the tables of period 2 disablement rates and the 1930 to 1950 termination rates of the 1952 disability study of the society of actuaries, with due regard to the type of benefit; for policies or contracts issued on or after January 1, 1961 and prior to January 1, 1966, either such tables or, at the option of the insurer, the class (3) disability table (1926), and for policies issued prior to January 1, 1961, the class (3) disability table (1926). In

addition, any such table shall, for active lives, be combined with a mortality table permitted for calculating the reserves for life insurance policies.

(f) Inter-company double indemnity mortality table. For accidental death benefits in or supplementary to policies--for policies issued on or after January 1, 1966, the 1959 accidental death benefits table; for policies issued on or after January 1, 1961 and prior to January 1, 1966, either such table or, at the option of the insurer, the inter-company double indemnity mortality table; and for policies issued prior to January 1, 1961, the inter-company double indemnity mortality table. Either table shall be combined with a mortality table permitted for calculating the reserves for life insurance policies.

(g) Group life and other tables. For group life insurance, life insurance issued on the substandard basis and other special benefits--such tables as may be approved by the commissioner.

Section 53. KRS 311.595 is amended to read as follows:

(1) Where such power has not been transferred by statute to some other board, commission or agency of this state, the board may deny an application for a license; place a licensee on probation for a period not to exceed five years; suspend a license for a period not to exceed five years; limit or restrict a license for an indefinite period; or revoke any license heretofore or hereafter issued by the board, upon proof that the licensee has:

(a) Knowingly made or presented, or caused to be made or presented, any false, fraudulent or forged statement, writing, certificate, diploma or other thing, in connection with an application for a license or permit.

(b) Practiced, or aided or abetted in the practice of fraud, forgery, deception, collusion or conspiracy in connection with an examination for a license.

(c) Committed, procured or aided in the procurement of an unlawful abortion.

(d) Been convicted of a felony involving moral turpitude. The conviction of any offense in another state, territory or country, which if committed in this state would be deemed a felony shall be held to be a felony under this section without regard to its designation in such other state, territory or country.

(e) Become addicted to a drug habit.

(f) Become a chronic or persistent alcoholic.

(g) Developed such physical or mental disability, or other condition, that continued practice is dangerous to patients or to the public. In enforcing this paragraph the board shall, upon probable cause, have authority to compel a physician to submit to a mental or physical examination by physicians designated by it. Failure of a physician to submit to such examination when directed shall constitute an admission of the allegations against him (unless the failure was due to circumstances beyond his control) consequent upon which a default and final order may be entered without the taking of testimony or presentation of evidence. A physician whose license has been suspended, limited, restricted or revoked under this paragraph shall at reasonable intervals be afforded an opportunity to demonstrate that he can resume the competent practice of medicine with reasonable skill and safety to patients.

(h) Engaged in dishonorable, unethical, or unprofessional conduct of a character likely to deceive, defraud or harm the public or any member thereof.

(i) Knowingly made, or caused to be made, or aided or abetted in the making of, a false statement in any document executed in connection with the practice of his profession.

(j) Employed, as a practitioner of medicine or osteopathy in the practice of his profession in this state, any person not duly licensed; or otherwise aided, assisted or abetted the unlawful practice of medicine or osteopathy or any other healing art.

(k) Violated or attempted to violate, directly or indirectly, or assisted in or abetted the violation of, or conspired to violate any provision or term of any medical practice act, including but not limited to the code of conduct promulgated by the board under KRS 311.601 [311.600] or any other valid regulation of the board.

(l) Violated any order of suspension, or the terms or conditions of any order of probation, issued by the board.

(m) Engaged in or attempted to engage in the practice of medicine or osteopathy under a false or assumed name.

(n) Obtained a fee or other thing of value on the fraudulent representation that a manifestly incurable condition could be cured.

(o) Wilfully violated a confidential communication.

(p) Had his license to practice medicine or osteopathy in any other state, territory or foreign nation revoked, suspended, restricted or limited or has been subjected to other disciplinary action by the licensing authority thereof.

(q) Failed or refused, without legal justification, to practice medicine in a rural area of this state in violation of a valid medical scholarship loan contract with the Trustees of the Rural Kentucky Medical Scholarship Fund.

(r) Given or received, directly or indirectly, from any person, firm, or corporation, any fee, commission, rebate, or other form of compensation for sending, referring or otherwise inducing a person to communicate with a person licensed under KRS 311.530 to 311.620 in his professional capacity or for any professional services not actually and personally rendered; provided, however, that nothing contained in this

subsection shall prohibit persons holding valid and current licenses under KRS 311.530 to 311.620 from practicing medicine in partnership or association or in a professional service corporation authorized by KRS Chapter 274, as now or hereafter amended, or from pooling, sharing, dividing or apportioning the fees and monies received by them or by the partnership, corporation or association in accordance with the partnership agreement or the policies of the board of directors of the corporation or association. Nothing contained in this subsection shall abrogate the right of two or more persons holding valid and current licenses under KRS 311.530 to 311.620 to receive adequate compensation for concurrently rendering professional care to a single patient and divide a fee, provided the patient has full knowledge of this division and provided the division is made in proportion to the services performed and responsibility assumed by each.

(2) In every proceeding for probation, suspension, limitation, restriction or revocation of a license, the secretary shall furnish the licensee with written notice setting out the substance of each offense charged, with sufficient detail to reasonably apprise such a person of the nature, time and place thereof. Proceedings and forms shall be in accordance with rules and regulations of the board, and hearings may be conducted by hearing officers of the board as provided in subsection (2) (b) of KRS 311.565, but no hearing shall be conducted until at least thirty days' written notice thereof has been given to the holder of the license, who shall have the right to be present, in person or by counsel, and to present evidence and to be heard in opposition to the charges which may be instituted by any individual, or organization, or by the board acting upon its own initiative or by the secretary on behalf of the board. Preliminary to the institution of any such proceeding, the secretary may refer the charge or charges to the state organization which represents the profession to which the holder of the license belongs, for investigation and recommendations as to adjustment, settlement or disciplinary action, and such professional organization may assist in the prosecution or defense of any such proceedings before the board, which shall not be bound to follow its recommendations.

(3) Except as otherwise provided in this subsection, every order of the board suspending, limiting, restricting or revoking a license shall become effective thirty days after notice is given to the licensee, unless said licensee, within thirty days from the giving of such notice, appeals therefrom in the manner provided by subsection (4) of this section. Provided, however, that the board may, when in its opinion the continued practice by the licensee during the time allowed for appeal would be dangerous to the health, welfare and safety of the licensee's patients or the general public, provide in its order of suspension, limitation, restriction or revocation that said order shall become effective forthwith and the licensee shall not, after notice of same, engage or continue to engage in any prohibited practice under the license unless and until the order is reversed or modified by a final and unappealable order or judgment of a court made pursuant to the provisions of subsection (4) of this section.

(4) Any licensee who is aggrieved by an order of the board placing the licensee on probation, or suspending, limiting, restricting or revoking his license may procure a declaration of rights under the Declaratory Judgment Act by filing, within thirty days after notice of said order, a complaint against the board in the circuit court of the county in which the board's offices are located, together with a bond with good and sufficient sureties thereon to cover all costs, which complaint shall request judicial review of the order and the proceedings held by the board, or its hearing officer, and set out with particularity the grounds relied upon for reversal or modification of the order. Summons and a copy of the complaint may be served upon the secretary for and on behalf of the board, and the secretary shall, within thirty days after such service and the filing of said bond, file with the court a transcript of the record of hearing together with a certified copy of the order complained of. The board may file an answer, or such other pleadings as it considers appropriate, and the court shall, after considering the transcript of the record and the board's order and any arguments of counsel, enter judgment. No new or additional evidence shall be introduced in the circuit court. In the event the action of the board is not sustained the court shall, upon request of the board, remand the case to the board for further proceedings. Any party aggrieved by the final judgment, order or decree rendered in the case may appeal therefrom to the Court of Appeals of Kentucky in the time, method and manner provided in the Declaratory Judgment Act and the Court of Appeals shall docket and advance the appeal as provided in said Act.

(5) Any notice, that is required to be given to a licensee by the board, or by its secretary or hearing officer, which is given by forwarding same by registered United States mail, postage prepaid, to the licensee at his last known address as it appears in the files of the board shall be sufficient.

(6) All members of the board, and its secretary and hearing officer, have authority to administer oaths, and to issue, in the name of the board, complaints, notices, summonses, subpoenas, and other process, in connection with any charge, proceeding or hearing relating to probation, suspension or revocation.

(7) The board may compel the attendance of witnesses at hearings in connection with disciplinary proceedings, and circuit and county courts are, upon petition of the board or its hearing officer, authorized and empowered to punish as contempt all failures to obey subpoenas and other process provided in subsection (6) of this section and all contemptuous or contumacious conduct directed to the board or its hearing officer in the course of disciplinary proceedings.

Section 54. KRS 317.450 is amended to read as follows:

(1) The barber board shall issue a license to practice barbering to any person who:

(a) Is at least eighteen (18) years of age;

- (b) Is of good moral character and temperate habit;
- (c) Has acted as a licensed apprentice for at least eighteen (18) months under the immediate supervision of a licensed barber;
- (d) Has satisfactorily passed the examination prescribed by the barber board;
- (e) Has paid a fee of \$20.00.
- (2) The barber board shall issue a license to act as apprentice to a barber to any person who:
 - (a) Is at least sixteen and one-half (16 1/2) years of age;
 - (b) Is of good moral character and temperate habit;
 - (c) Has at least four (4) years of high school education;
 - (d) Has graduated from an accredited or licensed school of barbering;
 - (e) Has satisfactorily passed the examination prescribed by the barber board; and
 - (f) Has paid a fee of \$20.00.
- (3) The barber board shall issue a license to operate a barber shop to any barber licensed under the provisions of this chapter upon application of such barber accompanied by a fee of \$10.00 provided that the barber board shall refuse to issue such a license upon a failure to comply with the provisions of this chapter or the rules and regulations of the board adopted pursuant thereto.
- (4) The barber board shall issue a license to operate a school of barbering to any person, firm or corporation who or which:
 - (a) Applies therefor upon forms furnished by the board;
 - (b) Has the equipment and facilities which may be required by rules and regulations of the board adopted pursuant to this chapter;
 - (c) Furnished any evidence deemed necessary by the board in the exercise of a sound discretion that it is the purpose of the applicant to establish a bona fide school for the education and training of competent barbers and can and will employ a sufficient number of licensed teachers of barbering to conduct such school;
 - (d) Pays a fee of \$100.
- (5) The barber board shall issue a license to teach barbering to any person who:
 - (a) Is of good moral character and temperate habit;
 - (b) Has a high school education and at least two (2) years of college;
 - (c) Has been a licensed and practicing barber for at least thirty-six (36) months;
 - (d) Has satisfactorily passed the examination prescribed by the board; and
 - (e) Has paid a fee of \$25.00.
- (6) Applications for examination required in this section shall be accompanied by an examining fee as follows:
 - (a) Barber--\$20.00;
 - (b) Apprentice to a barber--\$20.00;
 - (c) Teaching barbering--\$25.00.
- (7) Licenses issued pursuant to this section shall expire on the first day of July next following the date of their issuance but the board shall renew any license so expiring at no increased renewal fee if the required annual renewal license fee is paid within thirty-one (31) days after the expiration of such license, provided that the applicant for a renewal is otherwise in compliance with this chapter and the rules and regulations of the board adopted pursuant thereto. Any license shall automatically be renewed by the board upon receipt of the required annual license fee prior to the expiration date of such license, provided the applicant for renewal is in compliance with the provisions of this chapter and the rules and regulations of the board adopted pursuant thereto.
- (8) The annual renewal license fee for each type of license renewal shall be as follows:
 - (a) Barber--\$12.00;
 - (b) Apprentice to barber--\$12.00;
 - (c) Teacher of barbering--\$15.00;
 - (d) Barber shop--\$10.00;
 - (e) Barber school--\$75.00.
- (9) Except as provided in subsection (7) of this section, the fee for the renewal of an [un]expired license, where the period of expiration does not exceed five (5) years, shall be as follows:
 - (a) Barber--\$50.00;
 - (b) Apprentice--\$50.00;
 - (c) Barber shop--\$10.00;
 - (d) Barber school--\$75.00;
 - (e) Teacher of barbering--\$25.00.

Section 55. KRS 322.010 is amended to read as follows:

As used in this chapter, unless the context requires otherwise:

- (1) 'Board' means the State Board of Registration for Professional Engineers and Land Surveyors.
- (2) 'ECPD' means Engineer's Council for Professional Development.
- (3) 'Engineer' means a person who is qualified by reason of his knowledge of mathematics, the physical

sciences and the principles of engineering, acquired by professional education and practical experience, to engage in the practice of professional engineering.

(4) 'Engineering' includes any professional services, such as consultation, investigation, evaluation, planning, design, or responsible supervision of construction or operation, in connection with any public or private utility, structure, machine, equipment, process, work or project with which the public welfare or the safeguarding of life, health or property is concerned, when such professional service requires the application of engineering principles and data. It does not include the work ordinarily performed by persons who operate or maintain machinery or equipment, such as locomotive, stationary, marine or power plant operators, nor work embraced within the practice of land surveying.

(5) 'Practice of engineering' includes all professional services included in subsection (4), together with the negotiation or solicitation for engineering work on any project in this state, regardless of whether the persons engaged in that practice are residents of this state or have their principal office or place of business in this state or any other state or country, and regardless of whether they are performing one or all of these duties, or whether they are performing them in person or as the directing heads of offices or organizations.

(6) 'Land surveying' means and includes any services requiring the determination of the location of land boundaries and land boundary corners and incidental topography; the preparation of maps showing the shape and area of tracts of land and their subdivision into smaller tracts; the preparation of maps showing the layout of roads, streets and rights-of-way; and the preparation of official maps or plats of land within this state.

(7) 'Land surveyor' means and includes any person engaged in the practice of land surveying as herein defined, and shall include any public offer, or the holding out by any person to the public, to engage in the practice of land surveying.

(8) 'Practice of land surveying' or 'offer to practice' shall include performance of any act or acts directly related to land surveying, or any claim, oral or written, sign, letterhead, professional card, or other representation, on the part of any person representing himself to be a land surveyor or who holds himself out to the general public as possessing the ability and qualifications to perform land surveying within the terms of KRS 322.010, 322.200, 322.230 to 322.250, 322.420 [322.410] to 322.460.

Section 56. KRS 323A.120 is amended to read as follows:

(1) No license shall be revoked or suspended without a hearing. [;] T[t]he board may proceed against a licensee on its own initiative; on the basis of either information contained in its own records or information obtained through its informal investigation. When a formal complaint verified by affidavit is filed with the board by a responsible citizen or organization, containing allegations that if it were true would warrant suspension or revocation of a license, the board shall proceed against the licensee within three months.

(2) A written notice stating grounds for possible suspension or revocation of the license, setting forth with reasonable particularity the facts constituting the alleged offense and the time and place of the hearing before the board on the charges, shall be served on the accused not less than twenty days prior to the date of the hearing, either personally or by mailing a copy thereof by registered mail to the address of the accused last known to the board.

Section 57. KRS 323A.140 is amended to read as follows:

(1) Any person whose license is revoked by the board may appeal from the order of revocation by filing in the Franklin Circuit Court or in the circuit court in the district in which the licensee maintains his business a petition for appeal and a copy of the order of the board within sixty days of the date of entry of the order. He shall make bond for costs. The petition for appeal shall set forth with particularity the grounds upon which the appeal is taken. The licensee shall cause a copy of the petition for appeal to be served upon the secretary of the board.

(2) Within thirty days after service of notice of appeal, or within such further time as the court may allow, the board shall file in the Franklin Circuit Court or in the circuit court in the district in which the licensee maintains his business the original or a certified copy of the entire record of its proceedings under review; but, by stipulation of the parties the record may be shortened.

(3) The filing of the petition for appeal shall not stay enforcement of the order; but upon motion of appellant the Franklin Circuit Court or [in] the circuit court in the district in which the licensee maintains his business, in its discretion, may order a stay pending decision of the appeal. If the time for renewal of the license occurs during a stay of enforcement, the board shall grant a renewal upon application properly made and payment of the usual fees.

(4) The Franklin Circuit Court or [in] the circuit court in the district in which the licensee maintains his business shall set the case for hearing without a jury and dispose of the appeal de novo.

(5) Any aggrieved party may secure a review of any adverse judgment of the Franklin Circuit Court or [in] the circuit court in the district in which the licensee maintains his business under this chapter by appeal to the Court of Appeals. Such appeal shall be taken in the manner provided in the Rules of Civil Procedure.

Section 58. KRS 334.010 is amended to read as follows:

As used in this chapter, unless the context otherwise requires:

(1)[(a)] 'Board' means the board for licensing hearing aid dealers and fitters.

(2)(b)] 'License' means a license issued by the state under this chapter to hearing aid dealers and fitters.

(3)(c)] 'Temporary permit' means a permit issued while the applicant is in training to become a licensed hearing aid dealer or fitter.

(4)(d)] 'Hearing aid' means any wearable instrument or device designed for or represented as aiding, improving or correcting defective human hearing and any parts, attachments or accessories of such an instrument or device.

(5)(e)] 'Practice of fitting and dealing' in hearing aids shall mean the measurement of human hearing by means of an audiometer or by other means devised for the purpose of making selections, adaptations and sales of hearing aids to compensate for hearing loss. The term also includes the making of ear molds.

(6)(f)] 'Sell or sale' shall mean any transfer of title or of the right to use by lease, bailment, or any other contract.

Section 59. KRS 344.130 is amended to read as follows:

As used in this chapter unless the context requires otherwise:

(1) 'Place of public accommodation, resort or amusement' includes any place, store or other establishment, either licensed or unlicensed, which supplies goods or services to the general public or which solicits or accepts the patronage or trade of the general public or which is supported directly or indirectly by government funds: except that (1)(a)] a private club is not a place of public accommodation, resort or amusement if its policies are determined by its members and its facilities or services are available only to its members and their bona fide guests; and (2)(b)] 'place of public accommodation, resort or amusement' does not include a rooming or boarding house containing not more than one room for rent or hire and which is within a building occupied by the proprietor as his residence.

Section 60. KRS 345.120 is amended to read as follows:

(1) There is hereby created and established a State Labor Relations Board to assist in resolving disputes between public employers and fire fighters or their labor organization which shall be composed of three members appointed by the Governor, one for a term of two years, one for a term of three years, and one for a term of four years. The Governor shall designate one member to serve as chairman of the board. Thereafter, upon the expiration of the term of any member, members shall be appointed for four-year terms by the Governor.

(2) Each member of the board shall have been an elector in this state for at least one year next preceding his appointment. Any member may be removed by the Governor for cause, shown in a public hearing after the accused has been given a copy of the charges made and has had an opportunity to answer such charges. The Governor shall fill any vacancy by appointment for the unexpired term. No member shall receive a salary but each member shall be paid \$50 and expenses for each day during which he is engaged in the duties of the board. The board is authorized to hold hearings at any place in this state. Any and all expenses incurred by the Labor Relations Board shall be shared by all parties concerned in the dispute.

(3) The board shall appoint such employees as may be necessary to carry out the work of the board. All files, records and documents accumulated by the board shall be kept in offices provided by the board. All decisions shall be made by a majority of the board.

(4) To accomplish the objectives and to carry out the duties prescribed by this chapter, the board may subpoena witnesses, issue subpoenas to require the production of books, papers, records and documents which may be needed as evidence in any matter under inquiry, and may administer oaths and affirmations.

(5) In case of neglect or refusal to obey a subpoena issued to any person, the circuit court of the county in which the investigations or the public hearings are taking place, upon application by the board may issue an order requiring such person to appear before the board, any member or agent, to produce evidence or give testimony about the matter under investigation. A failure to obey such order may be punished by the court as a contempt.

(6) Any subpoena, notice of hearing or other process or notice of the board issued under the provisions of this chapter may be served personally, by registered mail or by leaving a copy at the principal office or place of residence of the respondent required to be served. A return, made and verified by the individual making such service and setting forth the manner of such service is proof of service and a returned post-office receipt, when registered mail is used, is proof of service. All process of any court to which application may be made under the provisions of this chapter may be served in the county wherein the persons required to be served reside or may be found.

(7) The board shall adopt, promulgate, amend or rescind such rules and regulations as it deems necessary and administratively feasible to carry out the provisions of this chapter. Public hearings shall be held by the board on any proposed rule or regulation of general applicability designed to implement, interpret or prescribe policy, procedure or practice requirements under the provisions of this chapter and on any proposed change in an existing rule or regulation. Reasonable notice shall be given prior to such hearings, which shall include the time, place and nature of such hearing and also the terms or substance of the proposed rule or regulation or the changes of such rule or regulation.

Section 61. KRS 352.010 is amended to read as follows:

- (l) As used in this chapter, unless the context requires otherwise:
- (a) 'Abandoned workings' means excavations, either caved or sealed, that are deserted and in which further mining is not intended, or open workings which are ventilated and not inspected regularly;
 - (b) 'Active workings' means all places in a mine that are ventilated and inspected regularly;
 - (c) 'Approved' means a device, apparatus, equipment, machinery or practice approved by the commissioner of the Department of Mines and Minerals;
 - (d) 'Approved safety lamp' means any bonneted lamp that bears the approval plate of the Federal Bureau of Mines and is approved by the Department of Mines and Minerals of this state;
 - (e) 'Assistant mine foreman' means a certified person designated to assist the mine foreman in the supervision of a portion or the whole of a mine or of the persons employed therein;
 - (f) 'Commercial mine' means any coal or clay mine from which coal or clay is mined for sale, commercial use or exchange. This term shall in no instance be construed to include a mine where coal or clay is produced for own use;
 - (g) 'Commissioner' means commissioner of the Department of Mines and Minerals;
 - (h) 'Department' means the Department of Mines and Minerals;
 - (i) 'Drift' means an opening through the strata, with opening grades such as to permit coal to be hauled by animals or mechanical traction power, and capable of being used for the purpose of ventilation, drainage, ingress, egress and other purposes in connection with the mining of coal;
 - (j) 'Excavations and workings' includes all the excavated portions of a mine, whether abandoned or being worked, all underground workings, shafts, slopes, tunnels, ways and openings, whether completed or in the course of being sunk or driven, and all roads, appliances, machinery and material connected therewith below the surface;
 - (k) 'Face equipment' means mobile or portable mining machinery having electric motors or accessory equipment normally installed or operated in by the last open crosscut in any entry or room;
 - (l) 'Fire boss' (often referred to as mine examiner) means a person designated by management to examine a mine or part of a mine for explosive gas or other dangers before a shift crew enters;
 - (m) 'Gassy mine' means any mine in which there is a record of methane having been ignited, or has been detected with a permissible flame safety lamp, or where methane in the amount of twenty-five hundredths percent or more has been found not less than twelve inches from the roof, face or rib, using approved methane testers or detectors or by analysis;
 - (n) 'High voltage' means any voltage greater than one thousand volts;
 - (o) 'Imminent danger' means the existence of any condition or practice which could reasonably be expected to cause death or serious physical harm before such condition or practice can be abated;
 - (p) 'Inactive workings' shall include all portions of a mine in which operations have been suspended for an indefinite period, but have not been abandoned;
 - (q) 'Low voltage' means up to and including six hundred sixty volts;
 - (r) 'Medium voltage' means voltages from six hundred sixty to one thousand volts;
 - (s) 'Mine' means any open pit or any underground workings from which coal or clay is produced for sale, exchange or commercial use, and all shafts, slopes, drifts or inclines leading thereto, and includes all buildings and equipment, above or below the surface of the ground, used in connection with such workings. Workings that are adjacent to each other and under the same management and which are administered as distinct units shall be considered a separate mine;
 - (t) 'Mine foreman' means the person who the operator or superintendent places in charge of the workings of the mine and of persons employed therein;
 - (u) 'Nongassy mine' means any mine not classified as a gassy mine;
 - (v) 'Open-pit mine' shall include open excavations, prospect openings and open-cut workings including auger mines for the extraction of coal or clay;
 - (w) 'Operator' means an individual, firm or corporation operating a coal or clay mine or any part thereof;
 - (x) 'Permissible' means any equipment, device, or explosive that has been approved as permissible by the United States Bureau of Mines and meets all requirements, restrictions, exceptions, limitations, and conditions attached to such classification by the bureau;
 - (y) 'Punch mining' means workings that are driven directly into the seam without cross entries;
 - (z) 'Pure intake air' means air that has not passed through the last working place of the split or by the unsealed entrances to abandoned workings and by analysis contains not less than nineteen and one-half percent oxygen nor more than one-half of one percent of carbon dioxide, nor any dangerous quantities of flammable gas nor any harmful amounts of poisonous gas or dust;
- (aa)[(1.)] 'Return air' means air that has passed through the last active working place on each split, or air that has passed through abandoned, inaccessible or pillared workings;
- (hb)[(2.)] 'Shaft' means a vertical opening through the strata that is or may be used, in connection with the mining of coal or clay, for the purpose of ventilation or drainage, or for hoisting men, coal, clay or materials;

(cc)(3.) 'Slope' means an inclined opening used for the same purpose as a shaft;

(dd)(4.) 'Superintendent' means the person who, on behalf of the operator, has immediate supervision of one or more mines;

(ee)(5.) 'Tipple or dumping point' means the tipple or structure where coal or clay is dumped or unloaded from the mine car into railroad cars, trucks, wagons or other means of conveyance;

(ff)(6.) 'Working face' means any place in a coal or clay mine in which work of extracting coal or clay from its natural deposit in the earth is performed during the mining cycle;

(gg)(7.) 'Working place' means the area of a coal or clay mine in by the last open crosscut;

(hh)(8.) 'Working section' means all areas of a coal or clay mine from the loading point or transfer point of the section to and including the working faces.

(2) The definitions in KRS 351.010 apply also to this chapter, unless the context requires otherwise.

(3) Except as the context otherwise requires, this chapter applies only to commercial mines as defined in KRS 351.010.

Section 62. KRS 367.220 is amended to read as follows:

(1) Any person who purchases or leases goods or services primarily for personal, family or household purposes and thereby suffers any ascertainable loss of money or property, real or personal, as a result of the use or employment by another person of a method, act or practice declared unlawful by KRS 367.170, may bring an action under the Rules of Civil Procedure in the circuit court in which the seller or lessor resides or has his principal place of business or is doing business, or in the circuit court in which the purchaser or lessee [lessor] of goods or services resides, or where the transaction in question occurred, to recover actual damages. The court may, in its discretion, award actual damages and may provide such equitable relief as it deems necessary or proper. Nothing in this subsection shall be construed to limit a person's right to seek punitive damages where appropriate.

(2) Upon commencement of any action brought under subsection (1) of this section, the clerk of the court shall mail a copy of the complaint or other initial pleading to the Attorney General and, upon entry of any judgment or decree in the action, shall mail a copy of such judgment or decree to the Attorney General.

(3) In any action brought by a person under this section, the court may award, to the prevailing party, in addition to the relief provided in this section, reasonable attorney's fees and costs.

(4) Any permanent injunction, judgment or order of the court made under KRS 367.190 shall be prima facie evidence in an action brought under this section that the respondent used or employed a method, act or practice declared unlawful by KRS 367.170.

(5) Any person bringing an action under this section must bring such action within one year after any action of the Attorney General has been terminated or within two years after the violation of KRS 367.170, whichever is later.

Section 63. KRS 439.580 is amended to read as follows:

(1) As used in KRS 439.590 to 439.630, unless the context otherwise requires:

(1)(a) 'Commissioner' means the Commissioner of the Department of Corrections;

(2)(b) 'Department' means the Department of Corrections;

(3)(c) 'Facility' means the community correctional center;

(4)(d) 'Relative' means a spouse, child (including step-child, adopted child or child as to whom the prisoner, though not a natural parent, has acted in the place of a parent), parent (including a person who, though not a natural parent, has acted in the place of a parent), brother or sister or grandparents.

Section 64. KRS 206.180, 278.560, 278.570, and 278.580 are repealed.

Approved March 28, 1974

CHAPTER 309

(H.B. 395)

AN ACT relating to commissioners of water districts.

Be it enacted by the General Assembly of the Commonwealth of Kentucky:

Section 1. KRS 74.020 is amended to read as follows:

(1) A water district shall be administered by a board of commissioners which shall control and manage the affairs of the district. The term of each commissioner is four (4) years, except as provided in this section: